



Intellectual Property Law (6th edn)

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p. 987 37. Absolute Grounds for Refusal

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Abstract

This chapter examines the ‘absolute’ grounds for refusing to register a trade mark as set out in section 3 of the Trade Marks Act 1994. It first looks at the reasons for denying an application for trade mark registration before analysing the absolute grounds for refusal, which can be grouped into three general categories: whether the sign falls within the statutory definition of a trade mark found in sections 1(1) and 3(1)(a) and (2) of the Trade Marks Act 1994; whether trade marks are non-distinctive, descriptive, and generic; and whether trade marks are contrary to public policy or morality, likely to deceive the public, or prohibited by law, or if the application was made in bad faith. Provisions for specially protected emblems are also considered.

Keywords: trade marks, Trade Marks Act 1994, registration, distinctiveness, descriptiveness, public policy, morality, bad faith, emblems

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1 Introduction

In this chapter, we explore the ‘absolute’ grounds for refusing to register a trade mark, which are set out in sections 3 and 4 of the Trade Marks Act 1994.¹ The ‘absolute grounds’ share two key characteristics. First, with one or two exceptions, the term ‘absolute’ indicates that the ground for objection relates intrinsically to the sign itself, rather than to the rights of individual third parties. For this reason, these grounds concern matters that can be scrutinized by the various Offices without reference to third parties.² Second, the ‘absolute’ grounds for refusal are grounds that give effect to a ‘public’ or ‘general’ interest (although the

public interest underpinning each ground may vary).³ One consequence of this is that if a sign is registered, which should have been refused on absolute grounds, any person may bring proceedings to have the mark declared invalid.⁴

The absolute grounds for refusal can be grouped into three general categories. The first is concerned with whether the sign falls within the statutory definition of a trade mark found in sections 1(1) and 3(1)(a) and (2). The second category of grounds, each of which is contained in section 3(1)(b)–(d), excludes from registrability marks that are non-distinctive, descriptive, and generic. The third and more eclectic category, which covers the absolute grounds for refusal set out in section 3(3)–(6), provides that trade marks shall not be registered if they are contrary to public policy or morality; if they are likely to deceive the public; if they are prohibited by law, including where they are protected geographical indication or names of plant varieties; or if the application was made in bad faith. Specific provisions also exist for specially protected emblems in section 4.

p. 988 Before considering each of these general categories, it is perhaps useful to step back and consider the question: when should a legal system deny the possibility of registration to an applicant? We suggest that there are at least five reasons.⁵ The first reason for denying registration is that the sign has not been sufficiently precisely defined—perhaps it is incapable of the precise definition that is necessary to define a property right. This explains the rejections relating to the sign and representation requirements under sections 1 and 3(1)(a), which were discussed in Chapter 35. A second reason why a trade mark regime might want to reject an application is where it is impossible, or unlikely, that the sign will function as a trade mark, in the sense of indicating commercial origin. If consumers will not see the sign as a trade mark, there is no justification for its protection as such. This is also reflected in Chapter 35, when discussing whether ‘capable of distinguishing’ in section 1 was a requirement that differed from ‘devoid of distinctiveness’ in section 3. A third reason for refusing registration is that granting rights in a particular sign might limit, rather than promote, competition. This reason goes some way towards explaining the exceptions with respect to shapes and other characteristics that were reviewed in Chapter 36, but, as we will see, similar reasoning arises with the other grounds of refusal, particularly descriptiveness. Fourth, a legal system might exclude some types of mark from registration because it does not want to encourage the use of those types of sign (as with immoral or deceptive marks), or because it wants to preserve the use to particular contexts (as is the case, perhaps, with state emblems). Finally, applications might be rejected not because of the character of the signs, but because of the behaviour of the applicant. If the applicant appears to be abusing the system, or using it opportunistically, this may be a good reason to reject the application.⁶

2 Subject Matter

Section 3(1)(a) of the 1994 Act provides that a sign that does not satisfy the requirements of a trade mark as set out in section 1(1)(a) will not be registrable. In practical terms, the requirements to be tested are whether the candidate is specific enough to (i) be a sign and (ii) satisfy the representation requirements. These two requirements, along with the identification of goods or services, are concerned with establishing boundaries to the property rights that registration confers. The types of sign that are potentially registrable are further

restricted by section 3(2), which provides special rules in relation to the registration of shapes or other product characteristics as trade marks. While both requirements constitute absolute grounds, since they were dealt with in Chapters 35 and 36 it is not necessary to look at them here.

3 Non-distinctive Marks

The second category of absolute grounds for validity relates to non-distinctive, descriptive, or generic marks. More specifically, section 3(1)(b)–(d) provides that the following trade marks shall *not* be registered:

- (b) trade marks which are devoid of any distinctive character;
- (c) trade marks which consist exclusively of signs or indications which may serve, in trade, to designate the kind, quality, quantity, intended purpose, value, geographical origin, or the time of production of the goods or of the rendering of the service, or other characteristics of the goods or services;
- (d) trade marks which consist exclusively of signs or indications which have become customary in the current language or in the *bona fide* and established practices of the trade;⁷ ...

Because each ground represents a separate basis for refusal (or invalidity), if it is to be valid, a mark must not fall within any of the three grounds. While each provision has a distinct sphere of operation, they will often be applied cumulatively⁸—that is, a mark will often be rejected on more than one ground. In many cases, the tribunals have said that a mark that is descriptive falls within section 3(1)(c) and, as a result, also lacks distinctive character, thus is excluded under section 3(1)(b). In contrast, a sign that is not descriptive may well lack distinctive character and thus be excluded under section 3(1)(b), even though it is not excluded under section 3(1)(c). The Court of Justice has clarified that ‘it is appropriate to interpret those grounds for refusal in the light of the general interest which underlies each of them ... [which may] reflect different considerations according to the ground for refusal in question’.⁹

Subsections (b)–(d) are all subject to the proviso that a sign that falls within any of the provisions (i.e., a sign that is non-distinctive, descriptive, or generic) is not to be treated as invalid if, as a result of use, it has ‘acquired distinctive character’. In other words, the objections in section 3(1)(b)–(d) apply to the ‘inherent’ characteristics of the sign and can be overcome if the sign comes to be understood by consumers as, in fact, communicating that the particular goods or services in relation to which the sign is used come from one particular trade origin. Sometimes, this distinction between inherent and acquired characteristics of a sign is likened to the characteristics an individual has from ‘nature’ and those that they acquire as a result of ‘nurture’. A sign’s distinctive character ‘may be intrinsic ... or may have been acquired by the use made of that sign’.¹⁰ A word perceived by consumers as intrinsically empty or meaningless (such as GOOGLE or IKEA) will be innately distinctive from its ‘nature’, whereas a descriptive word (DOUBLEMINT for mint chewing gum or OPTIONS for insurance services) will acquire ‘distinctive character’, if at all, only if there has been such use as to educate the public that the sign operates to distinguish the goods of one undertaking from those of another.

3.1 General Approach

3.1.1 What is the mark?

p. 990 To decide whether a sign is excluded under section 3(1)(b)–(d), it is first necessary to decide what the sign is. In many ways, this is straightforward: the sign is that for which registration is sought. This task is made easier by the fact that the applicant has to submit documentation identifying the mark and indicating whether protection is sought as a word mark, a figurative mark, a colour mark, or a three-dimensional mark.¹¹

3.1.2 The average consumer

In making the necessary predictive assessment, the relevant class from whose perspective the sign must be assessed has been defined as comprising the average consumers of the category of goods or services indicated in the specification.¹² In turn, the relevant consumer has been construed as ‘reasonably well-informed and reasonably observant and circumspect’.¹³ Although the consumer is assumed to be reasonably observant, the cases make clear that levels of attentiveness vary from sector to sector: the general consumer’s level of attentiveness in relation to everyday goods is lower than that of the consumer for expensive goods.¹⁴ It should also be borne in mind that where the products are purchased by both professionals and the general public, there will be more than one group of the public to consider. If the sign lacks inherent distinctiveness from the perspective of any one of these groups, that will be sufficient to deny registration.¹⁵

In the case of national marks in the United Kingdom, the average consumer has the characteristics of a British person; whether marks in a foreign language will be treated as registrable or as descriptive will depend on whether the average consumer is likely to understand the meaning of the sign. In turn, this will depend on the extent to which the mark is recognized in its original language, how widely the language is spoken in the United Kingdom, how familiar the word is, and how common it is for foreign words to be used in that trade.¹⁶

p. 991 The tribunal must interpret the sign as the notional consumer would. This process of interpretation will take into account so-called ‘normal’ and ‘fair’ use, including use on packaging and in advertising. Thus the assessment takes account of the possibility that the mark will normally be used not only in its represented form, but also orally. Consequently, the mark will be interpreted in terms of the overall impression that it makes on the average consumer—aurally, conceptually, and visually, taking account of the goods or services.¹⁷ In situations in which purchasers are attentive and a purchase is rarely made orally, a visual variation of a descriptive word (such as KA for cars) may render a sign registrable (even though the sign is phonetically equivalent to a description). However, where the goods are purchased orally, or advertised on the radio or television, mere visual alterations, such as misspellings, of otherwise non-distinctive marks are unlikely to render the sign registrable.

It is important to note in this respect that the sign will normally be viewed as a whole; a sign will not be rejected just because parts of the sign lack distinctiveness or are descriptive or customary in the trade.¹⁸ Nevertheless, consumers may ignore elements they regard as trivial or insignificant. Equally, consumers may expand abbreviated forms into their full unabbreviated form. Another situation where the tribunal will have

to assess how the ‘reasonably circumspect’ consumer interprets a sign is where an applicant combines, shortens, or telescopes two (or more) unregistrable terms.¹⁹ Although consumers tend to interpret signs as a whole, rather than dismember them into their component parts, certain obvious combinations or abbreviations may immediately be translated back into their (non-registrable parts). Thus EUROLAMB would immediately be interpreted as European lamb and thus, being descriptive (for lamb), be unregistrable. Court of Justice guidance indicates that the mere fact that an abbreviation derives from two descriptive terms is not dispositive. Actual, or likely, consumer usage of those terms in a descriptive sense or consumer recognition of their descriptive content is more important.²⁰

3.1.3 Assessment

Distinctiveness is assessed by the Registrar at the time of examination or in response to observations.²¹ It is assessed as of the date of application.²² Where an application is made and it is held that the sign lacks distinctiveness for certain goods, but not others, it should be refused only as regards those goods for which it lacks distinctiveness.²³ Conversely, where the same ground for refusal is given for a group of goods or services, the Registrar may use general reasoning for all of the goods and services that are sufficiently directly and specifically connected, provided the group or category is sufficiently homogeneous.²⁴ In deciding whether a sign is excluded, the tribunal should take account of all relevant facts and circumstances, including (where pertinent) opinion poll evidence.²⁵

p. 992 ↵ Ultimately, the assessment is one of fact. This has at least four consequences. First, care must be taken about making broad generalizations on the basis of previous decisions. It also means that it is not possible to formulate with any precision general rules about whether types of mark will be distinctive. A second consequence of the factual nature of the distinctiveness inquiry is that it is a subject on which different minds may well take different views. In *Doublemint*,²⁶ Advocate-General Jacobs indicated that, in many situations, ‘an element of subjective judgment’ will be required in order to determine whether a sign is within the exclusions. Third, the factual assessment in each individual case means that evidence of similar registrations at the UK Trade Marks Registry itself, or that the sign has been regarded as registrable elsewhere, will be of limited value. British courts have gone one step further and said that evidence about ‘other marks on the Register is in principle irrelevant when considering a trade mark tendered for registration’.²⁷ Fourth, since an appeal is usually based on a point of law, appealing against a factual distinctiveness determination is not possible.

With these principles in mind, we now turn to examine the exclusions relating to signs that are intrinsically or innately lacking distinctiveness, are descriptive, or customary. We then turn to consider how signs can be shown to have acquired distinctive character through use.

3.2 Devoid of Distinctive Character

Section 3(1)(b) of the 1994 Act provides that trade marks that are devoid of any distinctive character shall not be registered. The primary function of this exclusion is to exclude marks that do not even perform the ‘distinguishing function’.²⁸ As the Court of Justice stated in *Linde, Winward & Rado*,²⁹ distinctive character means ‘for all trade marks, that the mark must be capable of identifying the product as originating from a

particular undertaking, and thus distinguishing it from other undertakings'. The focus is therefore on how the trade mark would be perceived by the relevant public, which consists of average consumers of the goods or services in question.³⁰ In the absence of evidence of distinctive character, one must assess the anticipated performance of the mark in relation to the goods or services for which it is proposed to be used: an informed guess at what the relevant class of consumers would understand from the sign. To avoid rejection under section 3(1)(b), it must be concluded that the sign will be perceived as an indication that goods or services come from a single source—in other words, that it is a 'badge of trade origin'.

p. 993 With the benchmark established—does the sign possess origin-indicating ability?—the analytical framework adopted to test for it consists of three basic elements: (i) assess the sign, as applied for, (ii) with reference to the goods and services specified, (iii) from the perspective of well-informed, reasonably observant, and circumspect consumers for those categories of products.³¹ The relationship between the second and third elements of this test for inherent distinctiveness was clarified by the Court of Justice, during an attempt to register a hashtag mark (#DARFERDAS or 'can he do that?' in German), applied for in relation to clothing.³² The German registry had rejected this mark on the basis of lacking inherent distinctiveness. When seen on the front of a T-shirt, it would be perceived as a discussion point and an invitation to join a conversation. However, the applicant argued it could also be used on clothing labels, which improved the odds of it being perceived as a trade mark. In the absence of any actual use, how should a registry determine the notional use or placement of the sign on products, to assess consumer perception? According to the Court, examiners should consider 'the customs of the economic sector concerned ... When it is apparent from those customs that several uses are *practically significant* in that economic sector, [examiners should] take into consideration those various uses in order to determine whether the average consumer of the goods or services covered will perceive that sign as an indication of the commercial origin of those goods or services'.³³ Unlikely uses would not be practically significant and therefore require evidence that the applicant is actually using or intending to use the sign in that unusual way. The problem with this approach is that examiners are invited to consider the most likely frame of reference where a mark might be found and then imagine consumers seeing the sign there; other than basic descriptive terms like 'small', 'large', or 'cotton', most signs on a clothing label will be perceived as marks, because that is where consumers expect to find marks.

Consumers will readily recognize as indicating origin words that have no relation to the goods, such as NOXZEMA (for shaving cream) or APPLE (for computers), and equally will see abstract logos as having the same function. Therefore while invented words or neologisms are often considered inherently distinctive—and thus strong marks—sometimes the neologism is no more than the sum of its descriptive parts.³⁴ At the other end of the scale, trade mark law presumes that consumers are less likely to see colours, shapes, slogans, and the like as indicating origin, as we outline in what follows.

p. 994 Section 3(1)(b) excludes signs that the average consumer 'does not identify as reliably indicating the commercial origin of the product'.³⁵ Consequently, the provision excludes from registration signs that would not be perceived to communicate any message (because they would be treated simply as part of the goods or the appearance thereof),³⁶ and those that, while perceived as conveying information, are not perceived as indicating information as to trade source (e.g. where the sign is seen as a product number or perhaps as a slogan urging a person to do something or praising the product).³⁷ According to the Court of Justice, 'it suffices that the trade mark should enable the relevant public to identify the origin of the goods or

services protected thereby and to distinguish them from those of other undertakings'.³⁸ There is no requirement that the sign be inventive, imaginative, unusual, or linguistically or artistically creative, or that it differ from those 'which from the point of view of the relevant public are commonly used in trade in connection with the presentation of goods or services or in respect of which they could be used in that way'.³⁹ The General Court has repeatedly pointed out that criteria which may be relevant for design protection (such as novelty) or copyright protection (such as originality) will not be adequate substitutes for distinctiveness, or the origin-indicating ability of a sign.⁴⁰ Signs are excluded only if they are 'devoid' of distinctive character; some tribunals have indicated that a 'smidgeon' or minimal degree of distinctive character suffices for the absolute ground not to apply.⁴¹ However this tends not to be a low threshold in its actual application; as we see, minor variations of standard shapes or slight modifications of otherwise descriptive signs do not satisfy the distinctiveness requirement. Where a mark's inherent distinctiveness is challenged by the registry, it is for the applicant to provide specific and substantiated evidence that it has intrinsic distinctive character.⁴²

Although the courts have repeatedly indicated that the same tests are applicable to all marks, whether words, pictures, shapes, or colours, it is useful to look at the way in which the tribunals deal with these different types of sign. This is because the perception of the relevant section of the public is not necessarily the same for exotic marks, such as colours or shapes, as for words or figurative devices which bear no relation to the appearance of the goods.⁴³ Moreover, in its application to marks such as colours, section 3(1)(b) has been interpreted as requiring the tribunal to consider not only how the sign would be perceived by the average consumer of the goods, but also whether giving a single trader a monopoly over the sign would confer an unjustified competitive advantage on the applicant. Colour seemingly remains an outlier, since courts have subsequently indicated that such considerations of 'public' or 'general' interest are not relevant in the case of words, names, slogans, or shapes.⁴⁴ How far these kinds of consideration should extend to other sorts of sign is controversial.⁴⁵

While not specifically considered in this chapter, it should be noted that the case law on figurative signs or logos has now developed to encompass a range of issues, including the extent to which a figurative dimension (a graphic element or stylized font) can compensate for an otherwise weakly distinctive word mark⁴⁶ and when the figurative element might itself be descriptive or commonly used in relation to the goods and services being applied for.⁴⁷

p. 995 3.2.1 Simple signs: letters, numbers, grammatical signs, and figures

In most cases, single letters, numbers, grammatical signs, and simple geometric shapes will be treated as 'devoid of distinctive character'.⁴⁸ This is because consumers would not be able to assume that such signs indicated one particular source. Even in these cases, however, the question of whether the sign lacks distinctive character must be assessed on the facts. In the context of an application for the alpha symbol (α) the Court of Justice confirmed that the EUIPO could not presume that consumers were less likely to categorically perceive all single letters as non-distinctive, thereby increasing the applicant's burden, without taking into consideration the specific goods and services being applied for (alcoholic beverages), as the general test for distinctiveness requires.⁴⁹ The Registry and the courts should consider carefully how relevant consumers of the particular goods or services would react to the specific sign. Taking the example of numerals, the tribunal should consider whether the number would be taken to indicate catalogue numbers,

sizes, model numbers, quantity, date of production, etc., as opposed to being understood to be a trade mark.⁵⁰ The same is true of combinations of these elements, although in general the longer the combination, the more likely it would be thought to be a trade mark. Basic figurative signs or logos, including simple geometric shapes, are likely to be perceived by consumers as decorations or embellishments on products and therefore unlikely to be perceived as trade marks.⁵¹

3.2.2 Colour marks

Abstract or 'pure' colour marks—which include single colours and colour combinations—are likely to be treated as devoid of distinctive character.⁵² This is because, in the case of colours, the sign forms part of 'the look of the goods' and consumers are not in the habit of assuming the origin of goods merely based on the colour of packaging. Consequently, the Court of Justice in *Libertel* observed that '[a] colour per se is not normally inherently capable of distinguishing the goods of a particular undertaking'.⁵³ In addition, the Court has recognized that there is a strong public interest in favour of keeping colours free. This is because the number of colours actually available is limited and so a small number of trade mark registrations could exhaust the entire range of the colours available (an understanding sometimes referred to as 'colour depletion theory'). Exclusive trade mark rights over any such colour would potentially create 'an unjustified competitive advantage for a single trader'.⁵⁴ Consequently, in the case of a colour per se, 'distinctiveness without any prior use is inconceivable save in exceptional circumstances, and particularly where the number of goods or services for which the mark is claimed is very restricted and the relevant market very specific'.⁵⁵

p. 996 Apart from these exceptional circumstances, colours have otherwise been rejected on the basis that they descriptively signal a particular characteristic of the goods⁵⁶ or that they are not uncommon in the sector concerned.⁵⁷ These principles were applied in *Glaxo Group*, involving an unsuccessful application for a specific shade of purple for pharmaceutical preparations and inhalers for the treatment of asthma.⁵⁸ Glaxo argued there was no regulatory or legal requirement as well as no informal convention requiring inhalers to be colour coded. However, the General Court confirmed that an informal colour coding convention existed, such that lighter or darker shades indicated the strength of the inhalers. This meant the colour conveyed descriptive information about product characteristics. Restricting access to colours in this context would lead to an unjustified competitive advantage.

3.2.3 Shapes

Another area where the exclusion relating to marks that are 'devoid of distinctive character' is frequently tested is in relation to shape marks. The application of the inherent distinctiveness test to shapes has been clarified in a number of cases.⁵⁹

While the criteria for assessing the distinctive character of a three-dimensional trade mark consisting of the appearance of the product are no different from those applicable to other categories of marks, when those criteria are applied, the perception of the relevant consumer is likely to differ.⁶⁰ Consumers tend to see products as products and not as commercial source indicators. Average consumers are not in the habit of making assumptions about the origin of products on the basis of their shape in the absence of any graphic or word element, and it usually proves more difficult to establish distinctive character in relation to such a

three-dimensional mark than in relation to a word or figurative mark.⁶¹ Therefore only a mark which departs significantly from the norm or customs of the sector *and thereby* fulfils its essential function of indicating origin is not devoid of any distinctive character.⁶² Since the requirement is to 'depart significantly' from sectoral norms, shapes which are mere variants of these norms will not qualify.⁶³ Being the first or the only producer to offer a product in a certain shape—simply being novel—is therefore not sufficient to establish distinctiveness.⁶⁴ Additionally, the closer the applicant's shape is to the most likely shape that the product will take, the more likely it is that that shape is devoid of any distinctive character.⁶⁵ Platonic ideal forms are best avoided. Furthermore, where applicants have taken a shape or product feature common to one sector and applied it to a neighbouring product sector, the General Court has held that this will not constitute inherent distinctiveness in the new sector. Thus, a familiar wine bottle shape (the bulbous, flattened Bocksbeutel) would not have origin-indicating salience for beer or mineral water, since these products had a similar nature and targeted similar consumers.⁶⁶

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One issue which remains unresolved is whether departing significantly from sectoral norms per se is sufficient to constitute distinctiveness. In other words, should different always equal distinctive? Lord Justice Jacob rejected this proposition, stating that 'a very fancy shape is [not] necessarily enough to confer an inherent distinctive character ... As a matter of principle, I do not accept that just because a shape is unusual for the kind of goods concerned, the public will automatically take it as denoting trade origin, as being the badge of the maker.'⁶⁷ We have all eaten different or unusual meals, watched films which creatively depart from the norms of the genre, admired striking architecture or noticed unusual clothing on passers by, without necessarily attributing trade mark significance to these differences. The Court of Justice may have implied otherwise, suggesting that 'departing significantly' is a sufficient condition for establishing distinctiveness.⁶⁸ It remains to be seen how British courts will address this issue.

In terms of practical application, a three-step methodology for assessing whether a shape departs significantly was proposed by Lord Justice Floyd in *London Taxi*, where the registration related to the shape of the iconic London black cab as a trade mark (see Fig. 37.1).⁶⁹



Fig. 37.1 Application for the shape of a London taxi

Source: *London Taxi* [2017] EWCA Civ 1729

First, determine what the product sector is. This is to be used as the backdrop for comparing the shape against. The goods and services specified in the application form the basis for constructing the product sector. The more narrowly the sector is defined, the less likely it is to contain variations. This increases the odds of arguing that an applicant's shape will depart significantly, when measured against a more tightly bracketed set of norms and customs. The converse is true as well. A product sector populated with many variations makes it harder to argue in favour of inherent distinctiveness.⁷⁰ In *London Taxi*, the narrower category of licensed London taxi cabs gave way to the broader category of any type of private hire taxi, which included saloon cars and larger people carriers, as the backdrop for assessment. Furthermore, where such variations do exist, the full spectrum should not be collapsed into an average form for the sector, but instead

p. 998 include all the forms that consumers will expect to see in the sector.⁷¹ However, this does not mean ↵ that

a sector which has substantial variations will prove to be an insurmountable obstacle to inherent distinctiveness.⁷² Second, identify the common norms or customs of the sector, as they relate to features or characteristics of product shapes. For the private hire taxi sector in *London Taxi*, this included a superstructure on four wheels, a bonnet, headlamps, and so on. Third, assess whether the mark being applied for departs significantly from these norms and customs, considered in the round. Importantly, for the second and third stages of this test, it is the perspective of the average consumer which matters, rather than that of the design expert or trade specialist. The latter two may be more attentive to details which will escape the notice of consumers. However, the consumer is the ultimate arbiter of distinctiveness and will assess the mark as a whole.⁷³

p. 999 While the ‘departs significantly’ test has proved challenging for shapes, there are two alternative routes to registering shape marks, which have proved relatively more ↵ successful. The first is to register a shape mark in combination with a (visually prominent) word mark, logo, or some other independently distinctive element. The combination is then deemed to be distinctive.⁷⁴ A relatively neglected consequence is the scope of protection obtained by such marks. Will a defendant using a similar shape, but with their own prominent word mark on it, successfully refute an infringement claim?⁷⁵ Another strategic approach has been to apply for a shape mark in relation to goods and services far removed from the actual commercial sector in which the applicant operates. For instance, Jaguar Land Rover applied for an EUTM for the shape of the Range Rover Evoque SUV (See Fig. 37.2), not only for vehicles and apparatus for locomotion by land—an unsuccessful attempt—but also for vehicles and apparatus for locomotion by air or water, which was successful.⁷⁶

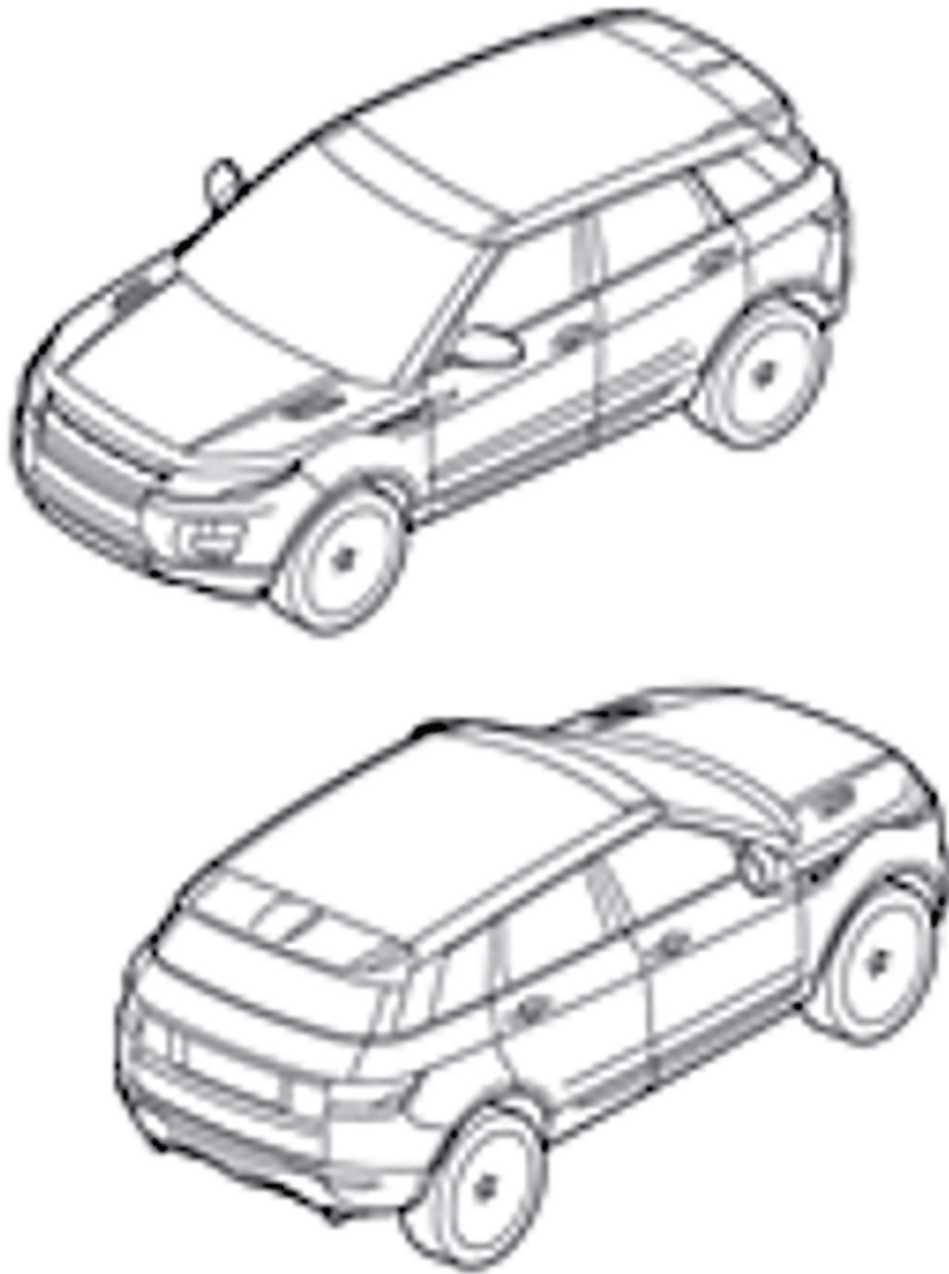


Fig. 37.2 Application for the shape of the Range Rover Evoque

Source: *Jaguar Land Rover v. OHIM*, Case T-629/14, EU:T:2015:878

The SUV shape was held to depart significantly from the norms and customs of boats and aircraft but this technique generates precarious rights, which are liable to revocation for non-use after five years or possibly invalidation even within the initial five-year ↵ period, on the basis of no intention to use the mark amounting to bad faith.⁷⁷ Outside of the Bond film franchise, a car which traverses land, air, and sea remains an unlikely proposition, at least for now.

3.2.4 Get-up and trade dress

The same inherent distinctiveness test applies to all categories of marks, including trade dress. This calls for an assessment of the sign being applied for, measured against the backdrop of the goods or services claimed, from the perspective of the relevant public, that is, consumers of those products. The overall impression of the sign must also be considered, which includes an assessment of its individual features.⁷⁸ However, as for shapes, the perspective of average consumer is infused with a greater degree of scepticism. Average consumers are not in the habit of making assumptions about the origin of products on the basis of their shape or the shape of their packaging, in the absence of any graphic or word element, and it could therefore prove more difficult to establish distinctive character in relation to such a three-dimensional mark than in relation to a word or figurative mark.⁷⁹ For example, where the packaging involves bottles, 'since liquid goods must of necessity be packaged for sale, the average consumer will perceive the packaging first and foremost simply as a form of container'.⁸⁰

The Court of Justice has been faced with a steady trickle of appeals from refusals of the EUIPO to register get-up on the ground that it is lacking in distinctiveness. In one case, the Court of Justice affirmed that the (then) CFI had not erred in law when it found that the shape of a long-necked bottle with a piece of lemon placed in the spout was not distinctive of beer (see Fig. 37.3).⁸¹ The CFI had found that this was a common way of presenting beer for consumption and that, given that consumers paid little attention, the combination would not be viewed as indicating source. In another case, the Court of Justice affirmed that no error existed in the (then) CFI's decision that stand-up pouches for packaging fruit juices and fruit drinks were not distinctive (see Fig. 37.4).⁸² It is only where the packaging departs significantly from the norm or customs of the sector and thereby fulfils its essential function of indicating origin that it will satisfy the distinctive character requirement.⁸³ Thus, the twisted wrapping of a sweet was refused registration as the normal and traditional shape for a sweet wrapper.⁸⁴ It approximated the usual or default packaging for such products. On rare occasions, the General Court has confirmed that the packaging will depart sufficiently from the norms and customs of the sector, such that consumers will perceive it as an indication of origin. Where such applications have been successful, it has been established that traders in specific sectors have educated

p. 1002 ↩ ↩ consumers over time, through certain packaging conventions, to 'read' trade mark significance into such variations.⁸⁵ An example is Nestlé's water bottle shape registered for non-alcoholic beverages (see Fig. 37.5).



Fig. 37.3 Long-necked bottle with lemon in spout

Source: *Eurocermex SA v. OHIM*, Case C-286/04P [2005] ECR I-5797



Fig. 37.4 Deutsche ‘Si-Si’ pouches

Source: Grünecker, Kinkeldey, Stockmair & Schwannhäuser



Fig. 37.5 The bottle design in *Nestlé Waters France v. OHIM*

Source: Nestlé Waters

However not every seemingly three-dimensional application will have to satisfy the more demanding 'departs significantly' test. In *Aktiebolaget Östgötatrafiken*, the applicant claimed figurative marks, eventually reclassified as position marks, in the form of concentric circles in the colours red, white, and orange.⁸⁶ The accompanying description stated that the marks would be used as the external colouring or livery of vehicles (see Fig. 37.6) and the marks were applied for transportation services in class 39.

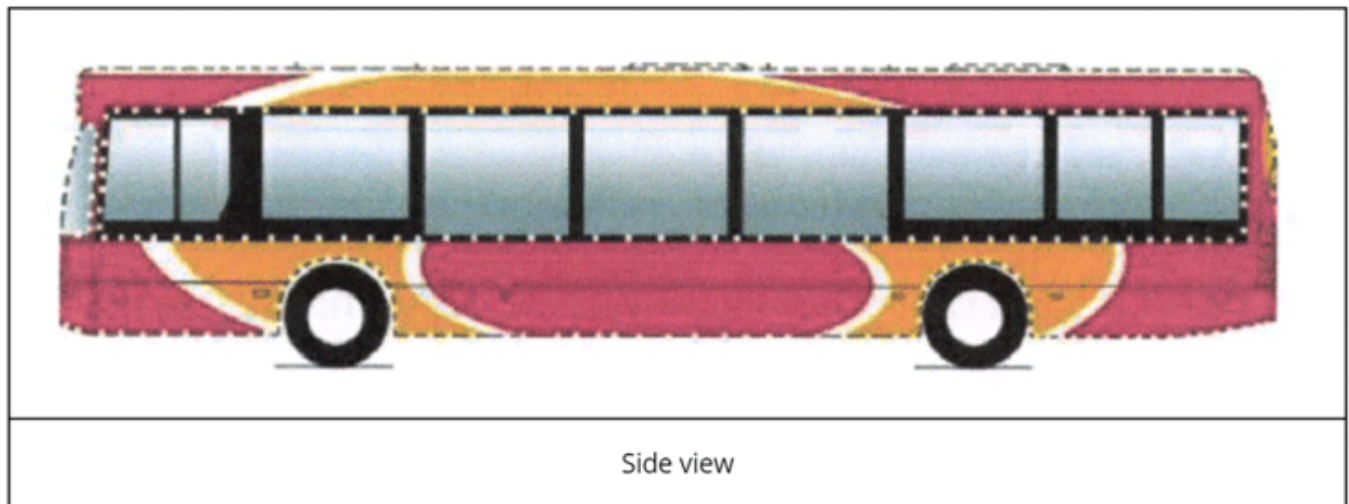


Fig. 37.6 Side view of a bus with the concentric circles mark

Source: *Aktiebolaget Ostgotatrafiken v. Patent- och registreringsverket*, Case C-456/19, EU:C:2020:813

The marks were initially rejected for being merely decorative, while they also did not depart significantly from the norms and customs of the transportation sector. The Court of Justice held that the modified inherent distinctiveness test for three-dimensional marks, such as shapes or store layouts, was not appropriate for such position marks. The analysis should instead focus on how the relevant public would read those systematically arranged concentric circles on the exterior of a bus, with the Court emphasizing their status as graphic elements. Inherent distinctiveness 'must be regarded as satisfied if it emerges from that analysis that the colour combinations applied to the transport vehicles ... enable the average consumer to distinguish, without any confusion, between the transport services provided by [the applicant] and those provided by other undertakings'.⁸⁷ It should be noted that if a court determines that such graphical elements are seen as decorative, they will not satisfy the regular inherent distinctiveness test.

p. 1003 3.2.5 Names and signatures

Traditionally under UK law, surnames had been considered non-distinctive and thus unregistrable.⁸⁸ In part, the decision to exclude surnames was motivated by the inconvenience that the grant of a right would cause to other traders who shared the same name. The courts also stressed that third parties who made legitimate use of their names ought not to be forced to rely on a defence equivalent to that contained in section 11(2).⁸⁹

However, under the 1994 Act, there is no a priori exclusion of surnames, or personal names, and the question of registrability is determined by the same standards as for other marks. The question in any given case will be whether the average consumer of the goods would assume that the name operates to indicate one particular manufacturer or supplier. In making this assessment, the Court of Justice has indicated, in *Nichols's Trade Mark Application*,⁹⁰ that an examining authority tribunal may not use *general* criteria, such as predetermined rules about how common the name is (e.g. a rule that if the name appears more than 500 times in the London telephone directory, it should not be registered). Moreover, the Court of Justice was clear that the 'unfair advantage' obtained by the first person to register a name over other traders who might wish to use it is irrelevant.⁹¹ However, commonness may be relevant to the consumer's likely appreciation of the *specific* name as an indication of origin of the *specific* goods. The scope of protection available for names registered as trade marks may therefore be limited.⁹²

The removal of the traditional rules for determining registrability of surnames has left something of a void, which has not yet been filled with much guidance from subsequent decisions. However, the Appointed Person provided some useful insights in *Oska's Ltd's Trade Mark Application*.⁹³ In the course of opposition proceedings, it was necessary to assess the distinctiveness of the opponent's earlier mark, MORGAN, for clothing. Following the guidance of the Court of Justice, Richard Arnold QC took into consideration the commonness of the name 'Morgan', the frequency with which names were used in the clothing trade, and the number of traders in the clothing field, and concluded that the average consumer would regard the surname as devoid of distinctive character. Before the average consumer would consider a common surname in the clothing trade as an indication of source, they would expect the addition of a forename (as with PAUL SMITH or TED BAKER).

One peculiarity should be noted: the full name of a famous personality may well be devoid of distinctive character (at least for goods that would be understood as merchandise). In *Elvis Presley Trade Marks*,⁹⁴ the Court of Appeal refused to allow registration of ELVIS and ELVIS PRESLEY for toiletries, perfumes, cosmetics, and soaps. The applicants had argued that as a result of changes in public awareness about character merchandising, consumers seeing the name ELVIS would assume the product to which it was attached was 'genuine'—that is, they would assume the goods originated from Elvis Presley's estate or from someone with rights granted by the estate. At first instance, Laddie J was not willing to accept this as an accurate portrayal of how the general public thought about the way in which the names of celebrities were used and the Court of Appeal affirmed that view: people treat a name as part of the product that they are purchasing, not as a feature that distinguishes the goods of one trader from those of another. For consumers, the goods are memorabilia or mementos of which the name is an essential component, rather than a different class of consumable commercial goods that people purchased because they came from a specific trader.⁹⁵

Where a name itself lacks distinctiveness, registration may nevertheless be obtained where an application is for the name in conjunction with a device or represented in a special or particular manner, so that the whole is distinctive. Perhaps the most obvious example is where the name takes the form of a person's signature. Signatures were specifically treated as registrable under the 1938 Act because they were seen as 'a substantially unique and frequently highly distorted way of writing the author's name. They are in a sense a private graphic tied to one person.'⁹⁶ Under the 1994 Act, a 'signature' may be registrable even if it is not written in a distinctive graphic style—a simple cursive rendition of Elvis's signature 'Elvis A. Presley' would probably be distinctive.⁹⁷ This may be the case even if the signature is not authentic.⁹⁸

3.2.6 Slogans

The question of whether slogans can be registered highlights some of the difficulties with assessing whether a particular sign will, when used, be understood to indicate origin. On the one hand, slogans are mostly understood as promotional communications and thus would not be understood as indicating origin. On the other hand, in many fields, slogans are used as marks, for example I CAN'T BELIEVE IT'S NOT BUTTER for margarine. Which form of use is the relevant authority to assume when it considers an application?

p. 1005 ↵ Although English courts have tended to suggest that slogans lack distinctive character⁹⁹ and the General Court has often taken a similar view,¹⁰⁰ the Court of Justice has reiterated that there are no special requirements for slogans. The case law of the Court demonstrates a reluctance to offer any concrete indications of what will make a slogan inherently registrable. While the Court acknowledges that consumers do not normally consider slogans to be trade marks,¹⁰¹ the Court will not tolerate any suggestion that a slogan be imaginative or creative to be registrable,¹⁰² although the presence of those qualities is likely to endow that mark with distinctive character.¹⁰³ This is illustrated by Oatly's application for IT'S LIKE MILK BUT MADE FOR HUMANS, for milk substitute products.¹⁰⁴ The EUIPO had rejected the mark on the basis that it was a laudatory or promotional slogan. It merely promoted the associated products to vegans or those with lactose intolerance as a milk substitute. The General Court disagreed, focusing instead on the conjunction 'BUT', which challenged the conventional idea that milk is a key part of the human diet. This set off a 'cognitive process' in the minds of consumers and made the sign memorable. Moreover, the Court of Justice has denied that the mere capacity of a slogan to be understood as promotional does not mean that the slogan necessarily lacks distinctive character. In *Audi AG v. OHIM*,¹⁰⁵ an application to register VORSPRUNG DURCH TECHNIK (meaning 'advancement through technology') had been refused for various goods and services on the basis that it was a slogan carrying an objective laudatory message.¹⁰⁶ The Court of Justice annulled the decision, observing that 'the mere fact that a mark is perceived by the relevant public as a promotional formula ... is not sufficient, in itself, to support the conclusion that that mark is devoid of distinctive character'.¹⁰⁷ A slogan could be both promotional and distinctive. Slogans will be refused registration if they are descriptive.¹⁰⁸

3.2.7 Sounds

While there is limited authority for sound marks, the General Court has upheld the EUIPO's refusal of an application for a 'ringtone' across a range of goods and services.¹⁰⁹ Since the mark consisted of a simple and banal ringing sound—and not, as the applicant had argued, a short yet sufficiently complex melody—it would go unnoticed and not be remembered by consumers, thereby inhibiting its ability to indicate origin. The Court confirmed that the perception of the relevant public is not necessarily the same for sounds,

p. 1006 ↵ so it could prove more difficult to register them. The degree of difficulty will vary across product sectors; while consumers of television broadcasting services, computer software, or media services may rely on sounds for distinguishing source, in other situations sounds are perceived as functional or indicators without any inherent characteristics. The ringtone belonged to the latter group, since it would remain self-referential (conveying a ringing sound) regardless of the context of use.¹¹⁰ Importantly, the General Court held that although consumers are not in the habit of perceiving stand-alone sounds as trade marks, the 'departs significantly' test for inherent distinctiveness, applicable to shape marks,¹¹¹ should not be applied to sound marks.¹¹² In this case, the application consisted of the sound produced when a beverage can is opened, followed by a silence of approximately one second and then a fizzing, pouring sound of approximately nine

seconds. The relevant products were metal cans and various beverages. However, the Court confirmed that the mark lacked inherent distinctiveness on the basis that it represented a purely technical or functional process—the opening of a beverage in order to consume it—and therefore lacked any independent, origin-indicating significance.

3.2.8 Position marks

A position mark ‘consist[s] of the specific way in which the mark is placed or affixed on the product’.¹¹³ Registration attempts have included the position of a metal button attached to the ears of soft toys such as teddy bears¹¹⁴ and a particular shade of orange applied to the toes of socks.¹¹⁵ While the overarching distinctiveness test applies to this category as well, factors which are relevant for three-dimensional/shape marks are also relevant here: is the positioning of the mark a departure from the norms in that sector and is it likely to be ‘read’ as having origin-indicating significance, as opposed to (say) a decorative purpose.¹¹⁶

Increased interest in position marks is partially attributable to the varied fortunes of Christian Louboutin’s attempts to register red-soled high-heeled shoes as a trade mark.¹¹⁷ The mark (see Fig. 37.7) consists ‘of the colour red (Pantone 18.1663TP) applied to the sole of a shoe as shown (the outline of the shoe is therefore not part of the trade mark but serves to show the positioning of the trademark)’ for high-heeled shoes (except orthopaedic footwear) in class 25.¹¹⁸ Besides questions surrounding the characterization of the mark—is it a pure colour, akin to a shape or a position mark¹¹⁹—and the ensuing representation requirements, the distinctiveness of this mark has also been contested.¹²⁰



Fig. 37.7 Louboutin’s red-soled shoe

Source: *Christian Louboutin v. Van Haren Schoenen*, Case C-163/16 (22 June 2017)

‘True’ position marks are sometimes classified by applicants as figurative marks, where trade mark registries lack specific provisions for this new category.¹²¹ This should not prevent them from being substantively examined as position marks. This was the case where the UK IPO rejected a ‘red dot’ figurative mark, whilst analysing it as a position mark.¹²² The mark was described as a ‘plain red dot affixed centrally to the bottom of a cooking receptacle (such as a pan, saucepan)’ while the goods were pans and woks in class 21. Drawing parallels with the approach to inherent distinctiveness for shapes, the Registry concluded that consumers were likely to perceive this feature as primarily decorative and/or functional; as a simple geometric circle in the centre of a round pan and not as a badge of origin.¹²³

3.3 Descriptive Marks

The second category of marks excluded from registration relates to ‘descriptive marks’. More specifically, section 3(1)(c) of the 1994 Act excludes from registration trade marks that consist *exclusively* of signs or indications that may serve, in trade, to designate the (i) kind, quality, or quantity; (ii) the intended purpose; (iii) the value; (iv) the geographical origin; (v) the time of production of the goods or of the rendering of the service; or (vi) other characteristics of the goods or service.

3.3.1 The function of section 3(1)(c): the requirement for availability

Whereas section 3(1)(b) is largely aimed at ensuring that the only signs that are registered are those that could be perceived as trade marks, section 3(1)(c) has an additional purpose (which we can call the ‘protective function’)—namely, to minimize the negative impact that the grant of trade marks may have upon traders p. 1008 working in the same or related fields. If trade mark law allowed one trader to obtain property protection over descriptive or generic marks, it could have a dramatic impact upon other traders. For example, if one greengrocer were given trade mark protection over the word ‘orange’ or ‘fruit’ (for oranges), it would interfere with the ability of other greengrocers to convey information about their goods or services. In other words, where there are a limited number of possible ways of describing or presenting one’s goods, the provision of legal monopolies over such signs might enable one trader to keep other traders completely out of the market.¹²⁴ The Court of Justice calls this ‘the requirement of availability’.¹²⁵

The first occasion when the Court of Justice considered Article 3(1)(c) of the TMD (the equivalent of section 3(1)(c)) was in *Windsurfing Chiemsee v. Attenberger*.¹²⁶ In this case, the question before the Court was whether the word CHIEMSEE, the name of a lake in Bavaria, could be a trade mark for sports clothing or whether such a mark fell within Article 3(1)(c). More specifically, the Court was asked to consider whether the application of Article 3(1)(c) depends on whether there is a ‘real, current, or serious need to leave the sign or indication free’. In answering this question, the Court acknowledged that one of the aims of the Article was to protect the public interest (referred to as the ‘general interest’ in subsequent cases)¹²⁷ by keeping descriptive signs or indications free for use by all traders.¹²⁸ The Court observed that:

Article 3(1)(c) of the Directive pursues an aim which is in the public interest, namely that descriptive signs or indications relating to the categories of goods or services in respect of which registration is applied for may be freely used by all, including as collective marks or as part of complex or graphic marks. Article 3(1)(c) therefore prevents such signs and indications from being reserved to one undertaking alone because they have been registered as trade marks.¹²⁹

It continued:

As regards, more particularly, signs or indications which may serve to designate the geographical origin of the categories of goods in relation to which registration of the mark is applied for, especially geographical names, it is in the public interest that they remain available, not least because they may be an indication of the quality and other characteristics of the categories of goods concerned, and may also, in various ways influence consumer tastes by, for instance, associating the goods with a place that may give rise to a favourable response.¹³⁰

The view that section 3(1)(c) must be understood in light of this public interest has, with one notorious exception,¹³¹ been reiterated on many occasions.¹³²

p. 1009 3.3.2 General

To avoid objection under section 3(1)(c), the applicant will need to establish that the sign is not used (and is unlikely to be used in the future) as a description of the characteristics of the goods or services.¹³³ The contested sign therefore cannot be descriptive 'in general' but must relate to some attribute of the goods.¹³⁴ Consequently, invented words such as MARANTZ (for hi-fi equipment), or PEPSI (for drinks), are likely to be registrable, because it is unlikely that traders could use them descriptively or that consumers would perceive them to be anything other than an indication of origin. In contrast, TREAT would be understood as describing the fact that the product was especially good, and EUROLAMB would be understood as usable in describing the fact that the product was a particular type of meat from a particular place. In between these extremes is a huge array of signs, not wholly descriptive, but partly suggestive of a product's quality; in such cases, the tribunal will have to make a judgment as to how consumers will interpret the sign.¹³⁵

3.3.3 Exclusively

Trade marks are excluded from registration by section 3(1)(c) only if they consist *exclusively* of signs that characterize the goods and services. This means that the mark *as a whole* must be descriptive for it to be excluded. The converse of this is that if it can be shown that part of a mark is non-descriptive, then it will fall outside the remit of the section, as long as that part is not *de minimis*. Thus marks that are made up of descriptive and non-descriptive matter may be protected.¹³⁶ However the non-descriptive elements should be sufficiently prominent to divert attention away from the purely descriptive ones, which will otherwise convey the (descriptive) message.¹³⁷ In the famous *Baby Dry* case (in which the Court of Justice held the words BABY DRY not to be exclusively descriptive of diapers), the Court suggested that 'any perceptible difference' between the applicant's sign and a descriptive term or terms is 'apt to confer distinctive character on the combination enabling it to be registered as a trade mark'.¹³⁸ Subsequent rulings have raised this threshold, which is generally considered a positive development. In *Campina Melkunie v. Benelux-Merkenbureau*,¹³⁹ the Court of Justice stated that the mere combination of elements that are each descriptive will not normally create a neologism that is registrable; rather, there must be some 'unusual variation, in particular to syntax or meaning', which produces an impression on the relevant consumer of something that is 'sufficiently far removed from that produced by the mere combination of meanings lent by the elements of which it is composed, with the result that the word is more than the sum of its parts'.¹⁴⁰ The application of this test would leave the words BABY DRY as registrable for nappies, while rendering BIO-MILD

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and DOUBLEMINT unregistrable for natural yoghurt and chewing gum (respectively). In the first case, the words ‘baby’ and ‘dry’ each alluded to the function of diapers, but because of ‘the syntactically unusual juxtaposition’, it was not a familiar expression for designating nappies nor for describing their essential characteristics. The phrase was a ‘lexical invention’, bestowing distinctive power on the mark. In the last case, the subtraction of the space left the sign as no more than a designation of the characteristic of its being mint-flavoured.¹⁴¹

3.3.4 Multiple meanings

The requirement of ‘exclusivity’ does not mean that a sign is excluded only if all possible meanings of a sign fall within the exclusion. Consider, for example, a word with two or more meanings, such as ‘pen’ (referring to a writing implement, a female swan, and a small enclosure for animals). In assessing whether ‘pen’ would be registrable for writing implements, the tribunal should not be content simply to find that there is one signification—that of a female swan—which is not excluded. If that were the case, then the existence of a single obscure meaning would render the mark not exclusively descriptive (and hence registrable). In *Doublemint*, the Court of Justice rejected an approach suggesting that the conceptual ambiguity generated by having to choose between alternative descriptive meanings prevented a term from being immediately descriptive. The ambiguity in the types of mintiness (spearmint, peppermint) and the notion of doubling (the types or strength) could not render DOUBLEMINT registrable. The Court concluded that a sign is excluded from registration if ‘at least one of its possible meanings designates a characteristic of the goods concerned’.¹⁴² The test in Article 7(1)(c) is not whether the sign is ‘exclusively descriptive’, but rather whether the trade mark consists exclusively of signs or indications that may have a descriptive capacity. The mere existence of another, non-descriptive, meaning is irrelevant.¹⁴³

3.3.5 ‘May serve’: the element of futurity

Section 3(1)(c) excludes from registration trade marks that consist of signs or indications that *may serve*, in trade, to designate the characteristics of the goods or service. The requirement that the tribunal should not only consider the current use of a term, but also its future associations, was recognized by the Court of Justice in *Windsurfing*,¹⁴⁴ where the Court said that the relevant tribunal should ask whether there was ‘an association in the mind of the relevant class of persons between the geographic name and the category of goods in question’ or, where there was none at the relevant date (i.e., the date of application), ‘whether it is reasonable to assume that such an association may be established in the future’. The *Windsurfing* approach was confirmed by the *Doublemint* decision, where the Court stated that, for the exclusion to operate, it is not necessary for the sign in question actually to be in use as a description of the goods or their characteristics; it is sufficient ‘that such signs could be used for such purposes’.¹⁴⁵ The test therefore has an element of ‘futurity’ about it.

p. 1011

3.3.6 Broad specifications and disclaimers

A final general point worth noting is that, when considering whether a sign is excluded, the tribunal should consider it in relation to each and every category of goods included in the specification. In many cases, a sign will be excluded only in relation to some categories of goods or services and not others. However, an

application will be refused registration if it is descriptive of the characteristics of any of the goods or services in a specific category of the specification. So if an application relates to orange for 'beverages', it will be refused registration on the grounds that it is descriptive (of orange-flavoured drinks) even though it would not be descriptive of apple-flavoured drinks.¹⁴⁶ In some cases, an applicant may be able to avoid such an objection by amending the application to 'apple drinks', but not, it seems, to 'beverages (other than those made from, coloured, or flavoured orange)'.¹⁴⁷ It should be noted that in appropriate cases, the same descriptiveness rationale can be 'globally' applied across a wide range of goods and services. Consequently SOCIAL.COM was found sufficiently directly descriptive for goods and services across several classes in relation to social media, since they all related to 'social interaction on the internet'.¹⁴⁸

3.3.7 Any characteristic of the goods or services

In the *Postkantoor* case,¹⁴⁹ the Court of Justice indicated that a sign falls within section 3(1)(c) if it is capable of being used to designate the characteristics of goods or services, even if the characteristic in question is of peripheral significance to the goods in question. Thus STINKY might be unregistrable for a weedkiller, even though the most important characteristic of a weedkiller is whether it is effective in killing weeds. 'Capability' should not be understood as presenting a purely abstract test, but rather should be considered in the context of the existing market and foreseeable developments therein. In *Agencja Wydawnicza Technopol v. OHIM*,¹⁵⁰ the Court added further language: a descriptive mark is one that designates a property, 'easily recognisable by the relevant class of persons', of the goods or the services in respect of which registration is sought. It agreed that '1,000' would be such a term in relation to puzzle magazines.

3.3.8 Must the association be 'specific and direct'?

The General Court has held that, for a sign to be descriptive, the association between a sign and goods or services must be 'sufficiently specific and direct to show that that sign enables the relevant public to identify those goods and services immediately'.¹⁵¹ The effect of this is that vague references to the character of the goods, including via laudatory epithets, may not be excluded under this provision (although they might nevertheless be excluded under section 3(1)(b) or (d)). So, for example, the (then) CFI treated ULTRAPLUS as registrable for ovenware, and the English Court of Appeal held that E.S.B. (an abbreviation of 'extra strong bitter') was protectable for bitter beer.¹⁵² AROMA was also registrable for cooking utensils and appliances, since it referred to the scent of the food cooked in the appliances and was not a characteristic of the appliances themselves.¹⁵³ One challenging situation is when a broadly descriptive term, which might need to be kept available, does not universally or objectively describe the characteristics of the goods. The EUIPO considered OFF-WHITE to be descriptive and therefore unregistrable for a range of products where colour influences purchasing decisions: spectacles and their cases, watches, precious stones, pillows and bedding. However, the General Court concluded that colour could not be a characteristic of such products, since this needed to be 'objective and inherent to the nature of that product ... and intrinsic and permanent with regard to that product'.¹⁵⁴ The desirability of a specific shade of colour was a subjective preference, such that the sign would not lead consumers to make a direct and immediate link with the product's characteristics. Combinations of descriptive terms, which are not otherwise found in dictionaries but where the semantic sum is not greater than its parts, will still be excluded from the register.¹⁵⁵

3.3.9 Marks that are not words

Although section 3(1)(c) is most frequently applied to word marks, it can in principle be applied to all types of marks. In joined cases *Linde, Winward Industries, and Rado Watch*,¹⁵⁶ the applicants sought to register three-dimensional marks comprising the shape of a forklift truck, a torch, and a watch, respectively. The Court of Justice held that Article 3(1)(c) of the Trade Marks Directive was equally applicable to shape marks. Although the Court did not provide any examples, two obvious ones are the bone shape of BONIO dog biscuits and the plastic lemon shape used by Reckitt's for its JIF lemon juice.¹⁵⁷ In one case in which the descriptiveness of a shape was contested, the Court held that the shape of a pine tree was not inherently descriptive of pine-scented air freshener.¹⁵⁸ Descriptiveness analysis is also frequently applied to figurative marks or figurative elements of composite marks.¹⁵⁹

p. 1013 3.3.10 Excluded significations

With these general points in mind, we now look at the categories of descriptive mark excluded by section 3(1)(c).

(i) *Kind, quality, or quantity* The first group of marks excluded from registrability are those that consist exclusively of signs that may serve to designate the 'kind, quality, or quantity' of goods and services. Undoubtedly, the greatest problem faced by a tribunal in this context is that of distinguishing between unregistrable terms or descriptions, and registrable allusions or suggestions. The General Court has affirmed EUIPO findings that BASICS is descriptive of paint,¹⁶⁰ GOLF USA of sports clothing,¹⁶¹ MAP&GUIDE of computer software,¹⁶² and TEK (the French and Italian word for 'teak') of metal shelves,¹⁶³ but that EUROPREMIUM is not descriptive of packaging.¹⁶⁴

(ii) *Intended purpose* A mark that describes what the product does, suggests what the consumer is to do with the product, or outlines what happens when the product is consumed will not be registrable. Consequently, for example, health was held to be descriptive of the intended purpose of 'medical services', because the sign indicated that such services were to restore the recipient's good health.¹⁶⁵

(iii) *Value* Trade marks that consist exclusively of signs that refer to the value of the goods or services will not be registrable. The reason for this is that consumers are unlikely to treat references to value as indications of origin. The provision also ensures that other traders are free to use common words and expressions to refer to things such as price and value. On this basis, signs such as CHEAP, ECONOMY, PREMIUM, or BEST BUY would lack inherent distinctiveness, but could, of course, acquire distinctiveness through use (as with BUDGET for car-hire services).

(iv) *Geographical origin* While trade mark law has long been reluctant to grant protection to signs that consist of geographical names and places,¹⁶⁶ not every sign that happens also to be the name of a stream, village, lake, mountain, or other geographical reference will be unregistrable. The precise application of the exclusion depends on careful consideration of what the average consumers of the goods or services would be likely to understand from their naming. In *Windsurfing*,¹⁶⁷ the question was whether the word CHIEMSEE, the name of the largest lake in Bavaria, could be a trade mark for sports clothing or whether such a mark fell

within Article 3(1)(c) of the Directive. The Court of Justice said the tribunal must assess whether a geographical name designates a place that is currently associated in the mind of the relevant class of persons with the category of goods concerned, or whether it is reasonable to assume that such an association may be established in the future.¹⁶⁸ As the Court explained, the exclusion does not necessarily preclude the registration of geographical names that are unknown to the relevant class of persons—or at least unknown as the designation of a geographical location—or of names in respect of which, because of the type of place they designate (say, a mountain or lake), such persons are unlikely to believe that the category of goods concerned originates there.¹⁶⁹

p. 1014 ↵ If there is an established connection between the place and the products in question—as with CUBA for cigars, SHEFFIELD for steel, FRANKFURT for financial services, or SILICON VALLEY for computers¹⁷⁰—registration will normally be refused. In the *Windsurfing Chiemsee* case, the Court of Justice observed that the connection was not necessarily confined to a belief that the goods were *manufactured* in a particular place, but ‘might depend on other ties, such as the fact that the goods were conceived and designed in the geographical location concerned’.¹⁷¹ For example, an application to register SAVILE ROW for spectacle frames was refused because of the proximity spectacles had to the goods for which Savile Row in London is famous (namely, tailors’ services), both being fashion items.¹⁷² On the other hand, if there is no established connection between even a famous place—such as the NEUSCHWANSTEIN castle in Bavaria, said to have inspired Disney’s own blue and white fairy tale castle—and the products being applied for, it appears registrable.¹⁷³ The difficulty with such a narrow approach to the ‘need to keep free’—applicable only where the place has a prior association with the products—under descriptiveness analysis, is that it ultimately restricted the market for souvenirs to the applicant (the Bavarian castle department), or their official licensees, whereas the term had been widely used in the past on a range of products and the national application failed to establish distinctiveness in Germany.¹⁷⁴

One key factor in deciding whether a sign of geographical origin should be excluded is the size of the place, since this affects how consumers are likely to understand the sign (and, in turn, whether other traders are likely to want to use it). The larger the place, the more likely it is that another trader may wish to use the name. Hence the reluctance to register EUROLAMB for meat,¹⁷⁵ or NORDIC for buildings and building materials,¹⁷⁶ and the willingness to register TOTTENHAM for various goods (all relating to Tottenham Hotspur Football Club).¹⁷⁷

Where no connection exists between place and the products in issue, such as with SWEDISH FORMULA for cosmetics, the signs will be registrable.¹⁷⁸ Even the names of sizeable places may be registrable if there is no realistic connection with the goods concerned: an example that has often been given is that of NORTH POLE for bananas.¹⁷⁹ Where a mark refers to a certain type of place, which contains a strong concentration of luxury or high quality products and this type of place can be found at different real-world locations, this is not sufficient to render the registration objectionably geographical.¹⁸⁰

(v) *The time of production of the goods or the time of rendering of the services* Marks such as NOW for on-demand television services,¹⁸¹ 24 HOURS (for restaurant services), SUNDAY (for newspapers), or SUMMERTIME for travel agency services would be inherently unregistrable as descriptive of the time of production or rendering of the goods or services.

p. 1015 (vi) *Other characteristics* The final part of section 3(1)(c) excludes signs that exclusively serve to designate ‘other characteristics’ of the goods or service.¹⁸² Perhaps the most troublesome set of cases under this head concern the situation in which a trader gives their goods or services an arbitrary quality and seeks to register as a trade mark a description of that quality. In *OHIM v. Zapf Creation*,¹⁸³ Advocate-General Jacobs advised the Court of Justice to annul the CFI’s finding that NEW-BORN BABY was not excluded from registration for toys and accessories for dolls under the equivalent of section 3(1)(c). While the Advocate-General agreed that NEW-BORN BABY was not a description of toys, he considered that the word combination was unregistrable, because it was a reference to the ‘characteristics’ of the goods—namely, that the toys represented or looked like newborn babies.¹⁸⁴ In contrast, in *Psytech International*,¹⁸⁵ the General Court agreed that the sign 16PF was not descriptive of various goods (software, printed matter) and services concerned with ‘personality testing’. It was argued by Psytech that ‘16PF’ referred to a test developed by Raymond Cattell in the 1940s, which focused on 16 different personality factors (such as warmth, dominance, sensitivity, and privateness). Viewing the relevant public as both the general public and specialists, the Court concluded that the general public would consider 16PF as ‘devoid of meaning’, while for specialists the term 16PF was primarily associated with the trade mark holder (which owned copyright in the questionnaire and was thus its main supplier). The Court of Justice observed that:

[I]f a section of the relevant public could perceive, without further thought, the intervener’s mark as referring to Dr Cattell’s 16 factor personality test, that would suggest that that mark performs the essential function of a trade mark which is to allow identification of commercial origin.¹⁸⁶

Importantly, perhaps, the Court did not think that there was any ‘16PF’ theory (so allowing a monopoly over the sign would not, in practice, prevent anyone else from offering—and being able to describe—functionally equivalent tests).

The exclusion of marks that refer to ‘other characteristics’ has also been applied to certain insignia used in merchandising. In *Linkin Park’s Application*,¹⁸⁷ the Appointed Person held that LINKIN PARK, the name of a rock band, was unregistrable for posters, because the term was descriptive of posters of the band (which consumers would doubtless refer to as ‘Linkin Park posters’). He rejected an argument that ‘other characteristics’ is confined to the ‘measurable properties’ rather than the ‘information content’ of the goods.¹⁸⁸ Similarly, in *Score Draw v. Finch*,¹⁸⁹ Mann J held that the ‘CBD’ device was so p. 1016 associated with the Brazilian football team that it could be said to designate the characteristics of goods bearing the device—Brazilian football shirts, boots, etc.

3.4 Customary and Generic Marks

Section 3(1)(d) of the 1994 Act provides that ‘trade marks which consist *exclusively* of signs or indications which have become customary in the current language or in the bona fide and established practices of the trade’ shall not be registrable.¹⁹⁰ Although it has been stated by the Court of Justice that the reason for this exclusion is that such signs are ‘incapable of distinguishing’ the goods or services of one undertaking from those of another,¹⁹¹ it should be noted that the section is especially concerned with the languages and practices ‘of the trade’. In the view of Advocates-General Colomer and Jacobs, the so-called ‘requirement of

availability' or 'protective function' also underpins this exclusion: signs that are customary in the trade are ones that other traders should be free to use.¹⁹² However, in contrast to the operation of the protective function under section 3(1)(c), the terms of section 3(1)(d) refer to the meaning that has already developed by the time of the application. Consequently, the possibility of the sign becoming a designation in the future is not relevant.¹⁹³

While the scope of the section has not been fully explored, it seems it will cover 'generic' marks. A mark, particularly a name mark, is generic if, even though when it was first adopted it was distinctive, over time it has come to designate a genus or type of product rather than a particular product originating from a particular source. Well-known examples include LINOLEUM, YO-YO, ASPIRIN, and CELLOPHANE. One of the features of a generic mark is that it is no longer capable of distinguishing the goods or services of different traders. Where a word comes to describe a class of products, it can no longer be relied upon to separate the products in the class from each other. In *Alcon v. OHIM*,¹⁹⁴ the Court of Justice held that the CFI had not erred in law when it found that BSS was unregistrable for sterile solutions for ophthalmic surgery. The CFI had found that ophthalmologists and ophthalmic surgeons practising in the European Union would have understood BSS as an abbreviation for 'buffered saline solution': scientific dictionaries and articles used the abbreviation, and many companies marketed products under designations containing 'BSS'. The Court held that there was no error in deciding that the relevant public (for assessing whether the sign was customary) was the specialist medical public, nor in its assessment of the facts. In *Backaldrin*, the Court of Justice clarified that the relevant public to be considered not only included consumers or end users but also, depending on the features of the product market, commercial intermediaries trading in the product.¹⁹⁵ Thus, where bakers were aware that KORNSPITZ was a trade mark for the baking mixture used to make a popular Austrian whole wheat bread roll but consumers used the term to refer to that type of roll, the perception of both groups was relevant. However, consumer perception and usage would ultimately be determinative; intermediary or trade usage was only relevant to the extent that it could influence consumer usage, whereas the bakers in this case did not emphasize the existence of the trade mark. In contrast, in *Psytech International*, the General Court agreed that the sign 16PF was not a generic designation of goods (software, printed matter) and services concerned with 'personality testing' because it was understood as referring to a questionnaire designed by a particular person and used by authorized users rather than as referring to a type of test.¹⁹⁶

Quite what is covered by section 3(1)(d) beyond 'generic' marks is less than clear. In *Merz & Krell*,¹⁹⁷ the Court of Justice was asked whether, in the case of terms such as BRAVO, which were used purely as terms of praise, or as incitements to purchase, or in advertising, there was a requirement that, before they fell within Article 3(1)(d) of the TMD, they had to be understood by the trade as *descriptions of specific goods and services*. The Court answered that the application of the provision needed to be considered in relation to the mark and goods or services concerned (which, in the case in hand, were writing implements).¹⁹⁸ However, the exclusion was not confined to terms that *described* the properties or characteristics of the goods or services covered by them; the exclusion also covered signs that 'designate' the characteristics of the goods or services. The Court failed, however, to elaborate on the distinction between a description and a designation. It seems that designation involves a looser association with the goods or services than description.¹⁹⁹ The Court of Justice also said that while the term need not describe the goods (as under Article 3(1)(c)), the mere use of the term in advertising did not of itself indicate that the term 'designated' the goods concerned.

Section 3(1)(d) may occasionally exclude pictorial marks. In *RFU & Nike v. Cotton Traders*,²⁰⁰ a registration by the Rugby Football Union (RFU) of an image of a rose for clothing was held to be invalid. Evidence of sales of shirts bearing a rose crest by undertakings not associated with the RFU indicated that it was customary to associate the rose with the England rugby team. Consequently, the sign was customary and not distinctive of the goods of the RFU.

p. 1018 3.5 Used Marks: Acquired Distinctiveness

So far in our discussions of section 3(1)(b)–(d), we have been concerned with whether marks are inherently registrable—that is, we have been looking at marks in their ‘natural’ or unused state. In this section, we turn to look at the ways in which an unregistrable mark—one which is non-distinctive, descriptive, or generic—becomes registrable through use. As the proviso to section 3 of the 1994 Act states, ‘a trade mark shall not be refused registration ... if, before the date of application for registration, it has in fact acquired a distinctive character as a result of the use made of it’.²⁰¹ Similarly, section 47(1) provides that a mark that is wrongly entered into the Register (because it lacks inherent distinctiveness) shall not be declared to be invalid where the mark has acquired distinctiveness after registration. The result of these provisions is that even if a mark inherently lacks distinctiveness, it is now possible to register the mark if it does *in fact* become distinctive.

Consequently, the only question that needs to be asked where a mark has been used is: has the mark in fact acquired a distinctive character?²⁰² The inquiry in relation to used marks is exclusively concerned with customer perception (i.e., the ‘distinguishing function’); the ‘protective function’ (the needs of other traders) is irrelevant.²⁰³ As a result, consumer recognition becomes the litmus test for whether a mark is registrable.²⁰⁴ The primary goal is to minimize consumer confusion by preventing other traders from using a similar mark. To successfully establish acquired distinctiveness, an applicant must be able to show that the primary significance of the word or sign indicates a source rather than, for example, merely describes or praises the product as it might have done in its natural state. The sign must have acquired ‘secondary meaning’. In *Windsurfing*,²⁰⁵ the Court of Justice explained that an unregistrable name (in that case, a geographical one):

may be registered as a trade mark if, following the use which has been made of it, it has come to identify the product in respect of which registration is applied for as originating from a particular undertaking and thus to distinguish that product from goods of other undertakings.²⁰⁶

By acknowledging this new meaning, the law is merely recognizing what has already happened in practice. Nevertheless, there are concerns that if the threshold for recognizing this is set too low, individual traders could appropriate descriptive and cultural signs, or non-traditional signs such as colours, primarily on the basis of an advertising investment over time.²⁰⁷

p. 1019 Before considering the requirements for acquired distinctiveness, a threshold question—which has recently generated controversy—relates to the precise significance of the mark, as a consequence of its commercial use. Is *recognition* of the mark and its *association* with a particular trader sufficient in order to establish acquired distinctiveness, or is something more specific required? Recognition suggests that the sign is merely familiar (but perhaps as a decorative feature), while association with a specific trader is not

necessarily the same as indicating commercial source. One associates the colour red with Coke, but also with Vodafone, Santander, Virgin, and Target. Associations per se may be too promiscuous for trade mark purposes. While this issue had previously arisen on several occasions, it was finally addressed by the Court of Justice in a reference from the English High Court.²⁰⁸ The reference arose in the context of determining whether the ‘naked’ shape—without any trade marks embossed on the surface—of a four-fingered KIT KAT chocolate wafer bar had established distinctiveness through long-standing use. Both the end point (eventual consumer perception) and the means by which it is achieved are important aspects of this enquiry.

In referring the matter, Arnold J contrasted two end point mental states—the potentially looser *recognition and association* requirement, as opposed to *reliance* on the shape instead of any other trade marks that may also be present upon the goods.²⁰⁹ The means used suggested that consumers did not have the opportunity to rely on the ‘naked’ bar as a trade mark, since the chocolate had been sold accompanied by word marks both on the external packaging as well as embossed on the surface of the individual chocolate fingers. While the Advocate-General rejected the recognition and association standard,²¹⁰ the Court of Justice reformulated the (end point) question: would consumers ‘*perceive* the goods or services designated exclusively by [the mark applied for], as opposed to any other mark which might also be present, as *originating* from a particular company’.²¹¹ The Court also confirmed that a sign could reach this end point whilst in the company of other trade marks on the same product, but the sign was ultimately expected to be capable of signalling origin on its own.²¹²

On its return to the national court, Arnold J incorporated the reliance standard within a perception-focused approach. In upholding the UK IPO’s rejection of the shape mark, the Judge concluded that it was legitimate for the ‘competent authority, when assessing whether the applicant has proved that a significant proportion of the relevant class of person perceives the relevant goods or services as originating from a particular undertaking *because of the sign in question*, to consider whether persons would *rely upon the sign as denoting the origin* of the goods if it were used on its own (i.e., without other trade marks being present)’.²¹³ Seemingly significant consumer survey evidence was attributed to establishing merely recognition and association, rather than reliance.²¹⁴ In turn, Arnold J’s conclusion was upheld on appeal, with Kitchen LJ articulating a potential reconciliation between the different ways of framing the analysis: ‘Perception by consumers that goods or services designated by the mark originate from a particular undertaking means ↵ they can rely upon the mark in making or confirming their transactional decisions. In this context, *reliance is a behavioural consequence of perception*’.²¹⁵ Perhaps the most useful lesson to be drawn is that the means matter; the applicant had not made ‘standalone’, origin-indicating use of the sign in question since the accompanying word marks did the source-signification work. Had it done so, the outcome might have been different.²¹⁶ The significance of this reasoning therefore extends beyond shape marks to all manner of non-traditional marks, which will face the same challenges.²¹⁷ The insufficiency of recognition and association has been confirmed in subsequent decisions. An application to register the shapes of two models of the Land Rover off-road vehicles inter alia relied on evidence of acquired distinctiveness.²¹⁸ The Registry Hearing Officer approached this evidence in two stages: first assessing sales, marketing, and trade evidence to reach a provisional conclusion and then assessing the surveys’ evidence to see whether it altered that conclusion.²¹⁹ The High Court concluded this two-stage approach was permissible as part of the global assessment envisaged under acquired distinctiveness, especially since surveys were an optional component.²²⁰ As regards why the surveys were ultimately unconvincing, the Court endorsed the Registry’s finding that while the surveys revealed that

20–40 per cent of the respondents recognized the shape, the cars had never been sold without accompanying word marks. Unauthorized modified versions of the car shapes sold under different brand names also existed on the market, thereby undermining public reliance on shapes alone. This did not lead to the conclusion that the shapes could be relied on, without further indications, to distinguish the goods of one undertaking from those of another. Similar reasoning was used to reject an application for a red dot as a position mark on cooking pans.²²¹

3.5.1 Displacement of the primary meaning

While the various authorities make it clear that to be registrable a sign must have become distinctive, there is less guidance as to the nature of the relationship between the old and new meanings. At the most extreme, some authorities seem to suggest that the new trade mark meaning must have completely replaced the original meaning. This seems to be what Jacob J required in *Philips v. Remington*²²² when he said that ‘unless the word, when used for the goods concerned, has in practice displaced its ordinary meaning, it will not properly denote the trader’s goods and none other’.²²³ However, to require that there be nothing left of the original meaning in any circumstances would be going too far (and indeed would be inconsistent with the idea that allusive marks will be registrable as long as the immediate impression given to consumers is not exclusively descriptive).²²⁴ Other authorities acknowledge that it is possible for a sign to become distinctive even though the ‘primary meaning’ still exists. For example, in *Windsurfing Chiemsee*, the Court of Justice explained that, where a geographical name has come to identify the product as originating from a particular undertaking and thus to distinguish that product from goods of other undertakings, the geographical designation ‘has gained a new significance and its connotation, no longer *purely descriptive*, justifies its registration as a trade mark’.²²⁵ The critical displacement of meaning is that which operates when the sign is used in relation to the particular goods or services, and the question is whether, in such a situation, the average consumer of the product immediately understands the sign as referring to source.

3.5.2 Numerical extent of recognition

For an unregistrable mark to become registrable, it is necessary for consumers to think about the sign as an indication of origin. One question that arises is: how widespread must the consumer recognition be? In *Windsurfing*, the Court of Justice said that the question is whether ‘the relevant class of persons, or at least a *significant proportion* thereof’, identify goods as originating from a particular undertaking because of the trade mark.²²⁶ The High Court has taken ‘a significant proportion to mean markedly above de minimis but not necessarily over half’.²²⁷

The Court of Justice has further clarified that it is not possible to say whether a mark is distinctive by reference to predetermined percentages.²²⁸ This is because the evidence that is needed to support a claim that a mark has become registrable through use (or, where wrongly registered, that it deserves to stay on the register) depends on how descriptive (etc.) the mark is in its ‘natural’ state. Thus, if the objections to the word are not strong, then it is likely that less evidence of acquired distinctiveness will be required. However, the more descriptive a mark is, the more convincing the evidence of acquired distinctiveness must be.²²⁹ In

Windsurfing, the Court said that, where a geographical name is very well known, it can acquire distinctive character only if there has been long-standing and intensive use of the mark by the undertaking applying for registration.²³⁰

p. 1022 3.5.3 Geographical extent of recognition

How widespread geographically must the acquired distinctiveness be? In *Bovemij Verzekeringen*,²³¹ the Court of Justice had to advise on the registrability of the mark EUROPOLIS for insurance services with the Benelux Trade Mark Office (which grants rights for Belgium, Luxembourg, and the Netherlands). The sign was descriptive to Dutch speakers, who understood the word *polis* as referring to insurance policies, but not to French speakers. The Court indicated that, to be registrable, the sign must be shown to have acquired distinctiveness by use throughout the territory where the ground of objection subsisted, in effect for a ‘significant proportion’ of Dutch speakers.

In the case of a UK trade mark, acquired distinctiveness would thus need to be demonstrated amongst a ‘significant part’ of consumers as a result of use throughout the United Kingdom. Consequently, in *Bignell v. Just Employment Law*,²³² a trade mark was held to be invalid on the basis that the fact that it had acquired distinctiveness within Surrey and the neighbouring counties was not sufficient evidence that a significant proportion of the relevant class of persons *in the United Kingdom as a whole* would have identified goods as originating from a particular undertaking because of the trade mark. However, in *Evegate Publishing v. Newsquest Media (Southern)*,²³³ Asplin J declined to invalidate a mark, SOUTH EAST FARMER, because even though use was demonstrated primarily in three counties in southeast England (Kent, Surrey, Sussex, and parts of Hampshire), it was not restricted to these areas. The Court concluded that the paper was advertised nationally, and so while its ‘reputation’ was geographically limited, its ‘distinctiveness’ existed outside the southeast.

3.5.4 The relevant consumers

On general principles, distinctiveness needs to be acquired across the full range of goods or services for which registration is sought. This needs to be established for both actual and prospective purchasers of the goods or services.²³⁴ For prospective purchasers, this principle may cause problems where a mark is used in relation to goods or services targeted at a niche market, because the sign might come to be known by a sub-set, but not by the mass of consumers of goods of the relevant type. It has now been confirmed that if the claimed goods (say, watches) are broader than the sub-category of goods on which the mark is actually used (say, luxury watches), consumers for the broader category—the general watch-purchasing public—will still set the benchmarks. Acquired distinctiveness will have to be established in relation to this broader category.²³⁵

3.5.5 Types of supporting evidence

A range of different types of evidence may be used to support a claim for registrability through use. In *Windsurfing Chiemsee*,²³⁶ the Court of Justice listed the following considerations: (i) the market share held by the mark; (ii) how intensive, geographically ↵ widespread, and long-standing the use of the mark has been; (iii) the amount invested by the undertaking in promoting the mark; (iv) the proportion of the relevant

class of persons who, because of the mark, identify goods as originating from a particular undertaking; and (v) statements from chambers of commerce and industry or other trade and professional associations.²³⁷ The General Court has confirmed that there is a hierarchy of significance for categories of evidence. Those circumstantial categories over which the applicant has greater control, such as the extent of use and advertising expenditure, are relevant only insofar as they produce objective results, by influencing the perception of the relevant public.²³⁸ Thus sales figures and advertising material constitute a form of secondary evidence which support more direct evidence of acquired distinctiveness, such as consumer surveys.²³⁹ Increasingly, evidence from the Internet is being used to establish consumer awareness of a mark.²⁴⁰ Where a mark is used online, website traffic, including Google analytics reports demonstrating the number of visitors to a website, is considered relevant. So is social media evidence, especially where it includes metadata that is provided directly by the platform, relevant to the time of posting or viewing content and which jurisdiction it is being viewed from.

(i) *Evidence of use* Acquired distinctiveness must be proved ‘on the basis of specific and reliable data’.²⁴¹ A tribunal may take into account evidence of the length of time for which the product has been on the market, the volume of the goods marketed, or the extent of services provided. Such evidence might be supplied by witness statements. Typically, examples of uses on packaging, marketing, and advertising, use on invoices, as well as details of expenditure, will also be submitted.²⁴² These uses should occur prior to the trade mark application, while the geographical territory to which they relate is an important consideration. The credibility of evidence submitted by certain parties, such as the applicant’s employees, is open to being challenged.²⁴³ However, the critical evidence concerns the impact of such activities; do they influence the perception of the sign amongst the relevant public?

A further set of issues relates to how the mark has been contextually used on the path to acquired distinctiveness. One such issue arises where there is a difference between the mark-as-used commercially and the mark-as-registered. The rule adopted is that insignificant differences will not impede acquired distinctiveness, but variations which affect the distinctive character of the mark cannot be used to support its registration.²⁴⁴ Another issue relates to the manner of use. Earlier in this chapter, when considering the *Kit*

p. 1024 *Kat* ↵ shape mark, it was established that an important consideration for acquired distinctiveness is whether the sign in question has been used in a trade mark sense, to indicate the commercial origin of the goods. The Court of Justice identified this as a requirement in *Philips*, another case relating to shape marks.²⁴⁵ The Court has additionally clarified that there is no need for the sign to be used alone; other trade marks may also be present. Thus a slogan on a product (e.g. HAVE A BREAK) might acquire distinctive character even though it had been used only when accompanied by a registered mark (KIT KAT) in the phrase HAVE A BREAK ... HAVE A KIT KAT.²⁴⁶ Equally, a shape might acquire distinctive character even though it is accompanied by a verbal mark.²⁴⁷

Kit Kat establishes that the means (manner of use) is what allows us to successfully reach the end (establishing acquired distinctiveness). Here we consider the means. Where a trader has a legal monopoly (e.g. exclusivity based on patent protection) or commercially dominates the market, the public may come to associate the sign being claimed—such as a three-headed electrical rotary shaver—with this trader.²⁴⁸ However, mere long-standing use of a certain feature or sign, without signalling that it is intentionally being used as a trade mark, is not sufficient. Once other traders begin to use the sign—it may be an attractive or useful product feature—the initial association with the original trader dissipates in the face of competing

uses. This logic applies to word marks as well, since words may be perceived as merely descriptive of the products or laudatory, as opposed to indicating commercial origin.²⁴⁹ This ‘use as a mark’ requirement is especially relevant for non-traditional marks, such as colours or shapes, since consumers are likely to otherwise attribute functional or aesthetic significance to them instead.²⁵⁰

(ii) *Advertising expenditure* Although the Court of Justice specifically stated that tribunals may take account of the amount invested by the undertaking in promoting the mark, British courts have been more sceptical as to the value of matters such as advertising expenditure or evidence of sales success as indicators of acquired distinctiveness. This is because evidence of use will not inevitably lead to a finding of distinctiveness *through* use. It is not the extent of promotional efforts that is crucial so much as it is the effect on consumers.²⁵¹

p. 1025 Consequently, evidence that the word TREAT had been used for five years did not, on its own, demonstrate that the mark had become a badge of trade origin. A concluding point worth noting is that the expenditure should specifically relate to the mark that is being applied for.

(iii) *Evidence of the trade* Moreover, although the Court of Justice also refers to the relevance of ‘statements from chambers of commerce and industry or other trade and professional associations’, UK courts have treated these as of only marginal significance.²⁵² The reason for this is that the relevant class of persons is not trade buyers, but the average customer of the product.²⁵³

(iv) *Consumer surveys* Since the inquiry is focused upon consumer attitudes to the sign, direct evidence from consumers and consumer surveys will most likely prove to be of value. The Court of Justice has stated that, in this context, EU law ‘does not preclude the competent authority, where it has particular difficulty in that connection, from having recourse, under the conditions laid down by its own national law, to an opinion poll as guidance for its judgment’.²⁵⁴ Under UK law, opinion polls are not precluded, but must be scrutinized with considerable care and their real probative value appraised.²⁵⁵

4 Other Absolute Grounds for Invalidity

The third and more eclectic category of absolute grounds for refusal is set out in section 3(3)–(6) of the 1994 Act. This provides that trade marks shall not be registered if they are contrary to public policy or morality, if they are likely to deceive the public, if they are prohibited by law, or if the application was made in bad faith. Particular provisions also exist for specially protected emblems.

4.1 Public Policy and Morality

Section 3(3)(a) provides that a trade mark shall not be registered if it is contrary to public policy or to accepted principles of morality.²⁵⁶ The two exceptions relate to the intrinsic qualities of the sign, rather than the manner in which it is used.²⁵⁷ They are potent exclusions because they apply across all categories of goods and services. There are two sets of inter-related concerns in relation to these exceptions. First, if the bar is set too low—any sign which might cause some offence becomes unregistrable—this runs the risk of inhibiting expressive values, at least to a certain extent; such marks can always be used as unregistered

p. 1026 marks, but with the ensuing enforcement challenges. Second, without clear guidelines and structured tests, the risk of subjectivity becomes ↵ greatly magnified; examiners are free to draw their own conclusions about whether a sign is offensive or not, leading to inconsistent outcomes.²⁵⁸

4.1.1 Morality

In an important intervention, the Court of Justice has clarified several aspects of the morality provision, which now form part of retained UK law. In *Constantin*, the applicant sought to register FACK JU GÖHTE, a deliberate misspelling of 'Fuck you, Goethe' constituting the title of a German comedy film, as an EUTM.²⁵⁹ This was rejected by the EUIPO on the basis that even if the mark had no sexual connotations, it would still be perceived as a vulgar insult, in bad taste. Apparently adding insult to insult, if not quite injury, was the (misspelled) use of a highly respected author's name. On appeal, this relatively abstract approach was contrasted with the actual reception of the film about 'the misadventures of a reformed bank robber at a chaotic German high school',²⁶⁰ which proved extremely popular in Germany and Austria. The film was watched by over seven million people and spawned two sequels. Notably, the Goethe Institute used the film as an educational tool. So how was the morality assessment to be conducted? The Court began by defining 'accepted principles of morality', bearing in mind its usual meaning and context of use:

[The] concept refers, in its usual sense, to the fundamental moral values and standards to which a society adheres at a given time. Those values and norms, which are likely to change over time and vary in space, should be determined according to the social consensus prevailing in that society at the time of the assessment. In making that determination, due account is to be taken of the social context, including, where appropriate, the cultural, religious or philosophical diversities that characterise it, in order to assess objectively what that society considers to be morally acceptable at that time.²⁶¹

Next, the Court confirmed that the bar would be set reasonably high: 'it is not sufficient for the sign concerned to be regarded as being in bad taste ... [and should instead] be perceived by the relevant public as contrary to the fundamental moral values and standards of society as they exist at that time.'²⁶² It also clarified the vantage point for assessment: 'the perception of a reasonable person with average thresholds of sensitivity and tolerance, taking into account the context in which the mark may be encountered'.²⁶³ In relation to this context, the Court clearly favoured an empirically informed investigation, rejecting an approach confined to an abstract assessment. Especially where a registry was provided with evidence that the sign did not in fact cause offence, the enquiry must focus on whether 'the use of that mark in the *concrete and current social context* would indeed be perceived by that public as being contrary to the fundamental moral values and standards of society'.²⁶⁴ An open-ended list of factors was suggested, to construct the likely public perception of the sign, which included legislation and ↵ administrative practices, public opinion, and, where appropriate, the way in which the public had reacted to similar signs in the past.²⁶⁵

p. 1027

Significantly, the freedom of expression was recognized as a relevant consideration when applying this exclusion.²⁶⁶ The Court endorsed the Advocate-General's reasoning,²⁶⁷ which considered how to incorporate respect for expressive interests into the Registry's practical application of this provision; for example, by giving it weight when assessing how the public is likely to react to the use of a sign and construing a more

liberal vision of public morality. However, by emphasizing ‘the social consensus prevailing’ as the benchmark, the Court has not directly addressed situations where a sign causes offence when viewed from a minority perspective, or that of a sub-set of the general public (i.e., the consensus has exceptions).²⁶⁸ The IPO expressly states that it ‘is sufficient that a mark which is likely to cause serious offence to a minority of consumers in the UK’ will trigger the section 3(3)(a) prohibition and this approach seems compatible with the Court’s reasoning.²⁶⁹

4.1.2 Public policy

Where signs are likely to cause offence, the case law to date has treated both morality and public policy within the same framework of analysis.²⁷⁰ There may well be situations where they overlap: for example, a sign might offend religious sensibilities in a manner that attracts both exclusions, or successful public policy initiatives might engender new moral norms over time. Nevertheless, there are compelling arguments for distinguishing between them. In *Constantin*, the Advocate-General pointed out the two grounds differed in ‘what exactly is to be assessed and how’.²⁷¹ Public policy is ‘a normative vision of values and goals, defined by the relevant public authority, to be pursued ... prospectively’ (a form of top-down reasoning, discernable in official policy documents and legislation), while accepted principles of morality depend on ‘the prevailing social consensus within that society at a given time ... the focus is primarily fixed on the past and present’ (i.e., bottom-up reasoning, informed by empirical evidence).²⁷² Although it did not address this distinction, the Court of Justice in *Constantin* was prepared to analyse each ground separately.

p. 1028 Public policy tends to be associated with legality, broadly construed. Thus, the EUIPO Guidelines refer to marks which contravene ‘the body of all legal rules that are necessary for the functioning of a democratic society and the state of law’.²⁷³ The UK IPO Manual ↵ indicates that the provision ‘is intended to deny protection to marks which could induce public disorder, or increase the likelihood of criminal or other offensive behaviour’. The examples given refer to marks with ‘criminal connotations, e.g. are associated with counterfeiting, illegal drugs or violence, or which exhibit racial, religious or discriminatory characteristics; or appear to be trivialising criminal activity’.²⁷⁴ As an illustration, this provision was held to apply to a composite mark with the words LA MAFIA and SE SIENTA A LA MESA (‘takes a seat at the table’) alongside a red rose, for clothing bars and cafes, since it trivialized the serious harm done by a notorious criminal organization.²⁷⁵ A less straightforward application of the exclusion related to CANNABIS STORE AMSTERDAM, accompanied by cannabis leaves in the background.²⁷⁶ Even though the mark was addressed to (lawful) consumers of cannabis-infused products, the general public was the benchmark for assessment. Furthermore, although the law and policy on cannabis is evolving, its trade and consumption remain broadly prohibited as criminal activities across the EU. The exclusion therefore applied. A final example, underscoring the focus on legality, relates to an application for BREXIT for food supplements, vitamin drinks, beverages, and cigarettes.²⁷⁷ Perhaps what is most surprising is that the mark survived a ‘devoid of distinctiveness’ challenge, despite being a widely used sign of the times. In relation to public policy, the examiner had rejected the mark on the basis that it would be deeply offensive to the average European consumer and to those in the United Kingdom who voted to remain. The Board of Appeal disagreed, holding that the mark represented an entirely lawful, sovereign political decision and that refusing to register it might be contrary to freedom of expression norms.²⁷⁸

Finally, it is worth noting a relatively recent development, where the public policy exclusion has been applied to prevent other intellectual property rights with finite durations from being registered as trade marks, thereby benefiting from potentially indefinite protection.²⁷⁹ The Oslo Municipality, which managed the copyright portfolio for the eminent Norwegian sculptor, Gustav Vigeland, applied for trade mark protection for certain sculptures nearing the end of their copyright term.²⁸⁰ The Norwegian Intellectual Property Office (NIPO) refused to register some of these artworks on a number of grounds, including public policy. The dispute was referred to the European Free Trade Association (EFTA) Court, which held that the public policy exclusion might apply ‘under the [exceptional] circumstances that [a mark’s] registration is regarded as a genuine and serious threat to certain fundamental values or where the need to safeguard the public domain, itself, is considered a fundamental interest of society’.²⁸¹ When applying this guidance, NIPO held that such a threat to the public domain did exist, and registration was denied. In *Jaguar Land Rover*, where the shape of the Land Rover had been previously protected by registered designs, the UK Registry rejected a public policy exclusion argument, since it would not meet the ‘serious threat’ threshold.²⁸²

p. 1029 4.2 Deceptive Marks

Section 3(3)(b) of the 1994 Act states that a trade mark shall not be registered if it is ‘of such a nature as to deceive the public (for instance as to the nature, quality or geographical origin of the goods or service)’.²⁸³ This prohibition tends to be applied to marks that, although distinctive, contain some kind of suggestion or allusion that is inaccurate. This is likely to be assessed from the viewpoint of the consumer who is reasonably well informed, observant, and circumspect.²⁸⁴ The risk of deception must be a real one and relate to the mark itself (as opposed to the way it is used). In *Elizabeth Emanuel*,²⁸⁵ the opponent was a well-known designer of wedding clothes, Elizabeth Emanuel. Although she had assigned her business to a third party (including a trade mark application), she later opposed registration of the mark ELIZABETH EMANUEL on the absolute ground that its nature was such as to deceive the public into believing that the clothes sold by the trade mark owner were of her design. The Examiner refused the opposition and, on appeal, the Appointed Person referred several questions to the Court of Justice. According to the Court, the ground for refusal (and the corresponding ground for opposition) requires ‘the existence of actual deceit or of a sufficiently serious risk that the consumer will be deceived’.²⁸⁶ The Court denied that the assignment of the mark of itself (as opposed to how the proprietor utilized it) gave rise to such a serious risk of deception. Even if the average consumer ‘might be influenced in his act of purchasing a garment bearing the trade mark ELIZABETH EMANUEL by imagining that the appellant in the main proceedings was involved in the design of that garment’, there was no deception because the ‘characteristics and the qualities of that garment remain guaranteed by the undertaking which owns the trade mark’.²⁸⁷ Although the questions referred to, and answers given by, the Court of Justice related to a rather specific set of circumstances (and accordingly left some questions to be decided on another occasion),²⁸⁸ the case appears to set a high threshold for the ground for refusal to apply. The Court also considered the application of this exclusion in the context of invalidity proceedings for an EUTM. A (regular) figurative trade mark was being used as a certification mark, to certify the composition and quality of cotton textiles, via the use of licence agreements. Would such a mark be deceptive ‘where the proprietor of the mark fails to ensure, by carrying out periodic quality controls at its licensees, that

expectations relating to the quality which the public associates with the mark are being met’?²⁸⁹ The Court left it to the referring national court to decide whether there was a sufficiently serious risk that the use of the mark per se—as opposed to the mismanagement of its licensing—would deceive consumers.

p. 1030 ↵ The exclusion has been applied to signs that misleadingly suggest official approval and to signs that wrongly suggest goods are made out of particular materials or come from particular locations. The General Court has held that the mark CAFFÈ NERO, which means black coffee in Italian, would be deceptive if it was used on tea.²⁹⁰ The UK Trade Marks Registry refused an application for a collective mark, CHARTERED FINANCIAL ANALYST (for financial services), reasoning that the sign would give the impression to the average consumer that the users of the mark were members of a professional organization of the sort that benefits from a royal charter.²⁹¹ The EUIPO Board of Appeal rejected an appeal from a decision refusing registration of TITAN (which means ‘TITANIUM’ in German, Swedish, and Danish) for building units made of non-metallic materials,²⁹² and of WINE OH! for, among other things, beverages.²⁹³ The term TITAN was misleading because consumers could be led into taking an interest in the products on the basis of an indication that they were made of titanium. The term WINE was misleading for water and the addition of OH! merely emphasized this. The Board was not able to assume that the misleading connotation would be corrected as a result of the nature of the packaging of the water. In contrast, if the mis-description is obvious and is such that it would immediately be corrected on further observation by the consumer, such mis-descriptions will not render the sign invalid.

Another situation in which a trade mark may be refused is if it gives rise to a real, but inaccurate, expectation that the goods come from a particular locality. For example, an application to register MCL PARFUMS DE PARIS for toiletries including perfumes was refused by the UK Registry, on the grounds that the mark created an expectation that the perfume would be manufactured in Paris, so that (if it were not) the trade mark would deceive the public not only as to the geographic origin of the goods, but also as to their nature and quality.²⁹⁴ The refusal of signs involving geographical mis-descriptions parallels the role of section 3(4) discussed later. However, the circumstances in which the owner of a protected designation of origin can object to use of that designation or a similar one may be broader than the situations in which a mark will be treated as misleading.

4.3 Marks Prohibited by Law

Section 3(4) provides that ‘a trade mark shall not be registered if or to the extent that its use is prohibited in the United Kingdom by any enactment or rule of law other than law relating to trade marks’. Thus a mark will not be registered if it is unlawful under statutes such as the Geneva Conventions Act 1957 (protecting symbols of the Red Cross) or the Hallmarking Act 1973.²⁹⁵ The illegality must be intrinsic or inherent in the mark, rather than in the goods for which its use is proposed.²⁹⁶ Section 3(4A)–(4D) provides ↵ that

p. 1031 registration will be prohibited for terms that are protected geographical indications, traditional terms for wine, traditional specialities guaranteed (which protect traditional, recipe-based products), and plant varieties.

4.4 Bad Faith

According to section 3(6), a trade mark shall not be registered if, or to the extent that, the application is made in bad faith.²⁹⁷ The consensus is that while this term relates to the ‘subjective motivation on the part of the trade mark applicant’, it ‘cannot be confined to a limited category of specific circumstances’ and must be assessed ‘case by case, taking account of all the available evidence of the relevant circumstances’.²⁹⁸ Notwithstanding the need for flexibility, the Court of Justice has incrementally identified a definitional core. In *Koton*, it held that, in accordance with its everyday meaning, bad faith ‘presupposes the presence of a dishonest state of mind or intention’.²⁹⁹ This needs to be assessed in the specific context of trade mark law and the course of trade, where marks—as indicators of commercial origin—contribute to a system of undistorted competition by allowing consumers to reliably distinguish between products.³⁰⁰ Conversely, this implies that a good faith application is one where the mark is legitimately used, or intended to be used, to indicate the origin of products actually placed on the market. Consequently, bad faith can be established ‘where it is apparent from relevant and consistent indicia that the [trade mark] proprietor ... has filed the application ... not with the aim of engaging fairly in competition but with the intention of undermining, in a manner inconsistent with honest practices, the interests of third parties, or with the intention of obtaining, without even targeting a specific third party, an exclusive right for purposes other than those falling within the functions of a trade mark, in particular the essential function of indicating origin’.³⁰¹ Thus the two main limbs of bad faith are either (i) unfairly targeting the interests of a specific third party, or (ii) registering a mark for purposes other than its use as a badge of origin for products on the market. The applicant’s intention ‘is a subjective factor which must be determined by reference to the objective circumstances of the particular case’.³⁰² Seeking to determine the subjective intention from an objective standpoint aligns with the approach previously adopted by British tribunals. This calls for ‘an overall assessment, taking into account all the factors relevant to the particular case’.³⁰³

Courts have attempted to map out some of these indicative factors. In *SkyKick*, in addition to being required to fit under either of the two limbs described above, the applicant’s inability to provide a commercial rationale for its very broad product specifications was clearly significant.³⁰⁴ In *Lindt*, the applicant registered the appearance of a golden rabbit with a red bow around its neck for chocolate (see Fig. 37.8) and relied on the registration to bring an action against Hauswirth, which was also selling chocolate rabbits (see Fig. 37.9) and had done so in Austria since 1962.³⁰⁵ Bad faith was alleged since the underlying concern was that Lindt was trying to inhibit an existing market for animal-shaped chocolate confectioneries. The Court said that particular attention should be paid to: (i) whether the applicant *knows or must know* that a third party is using an identical or similar sign for an identical or similar product capable of being confused with the sign for which registration is sought (i.e., triggering infringement, if the application is successful); (ii) the applicant’s *intention* to prevent that third party from continuing to use such a sign; and (iii) the degree of legal protection enjoyed by the third party’s sign and by the sign for which registration is sought.



Fig. 37.8 Lindt chocolate rabbit

Source: Chocoladefabriken Lindt & Sprüngli AG v. Franz Hauswirth GmbH, Case C-529/07 [2009] ECR I-4893

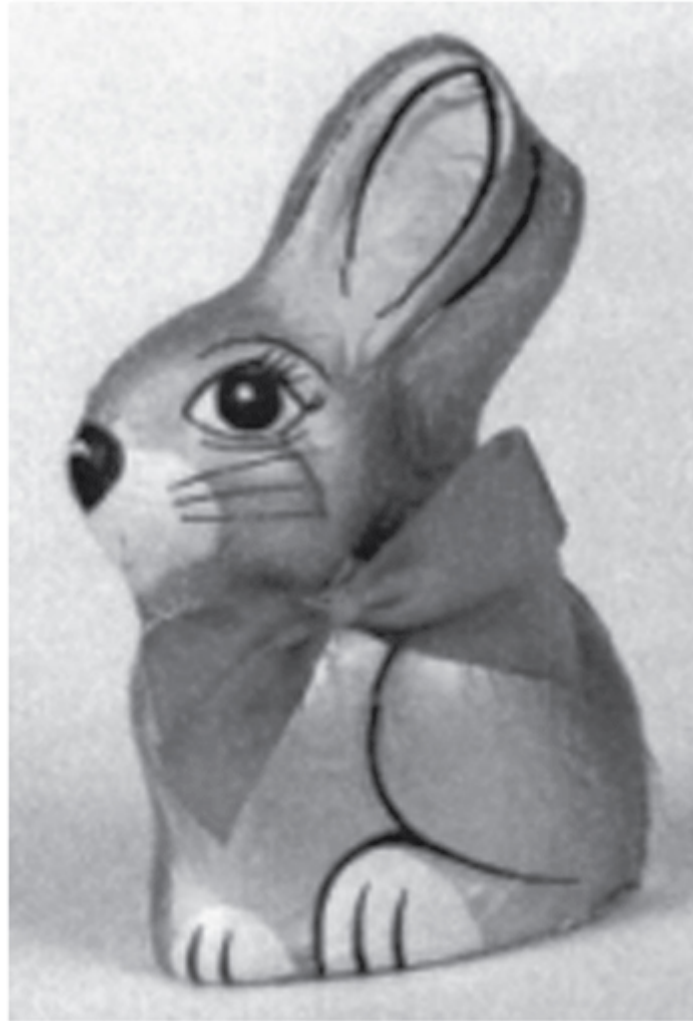


Fig. 37.9 Hauswirth chocolate rabbit

Source: *Chocoladefabriken Lindt & Sprüngli AG v. Franz Hauswirth GmbH*, Case C-529/07 [2009] ECR I-4893

Other factors include the origin of the contested sign and its use since its creation, as well as the chronology of events leading up to the Registry application, which can shed light on the applicant's intention.³⁰⁶ Besides these bad faith factors, additional criteria have been summarized by the High Court, such as the relevant date for assessment being the application date and a reminder that there is a presumption that marks are applied for in good faith, so if bad faith—a serious allegation—is alleged, the onus is on the party making this allegation.³⁰⁷ Bad faith tends to arise in three recurrent sets of fact patterns: ↵ where there is no intention to use the mark, where there is an abuse of a relationship, and where the applicant was aware that a third party had some sort of claim to the goodwill in the mark.

4.4.1 No intention to use the mark

Where an application is made with no immediate intention to use the mark, two seemingly conflicting principles are relevant. The first is that protected marks ought to actually be used in trade. This is presumed by the normative justifications for trade mark protection—the origin-indicating function has to actually

function—and is reflected in ‘use it or lose it’ provisions, where non-use is the basis for revocation under section 46(1)(a) and (b).³⁰⁸ In the United Kingdom, it is additionally reflected in section 32(3), a procedural provision that requires, as part of the application, a declaration that the mark is being used or else that the applicant ‘has a bona fide intention that it should be so used’. The consequence of disregarding this principle is ‘cluttered’ trade mark registers, where partially or wholly unused marks exist only on paper. This increases clearance costs for new applicants, while potentially blocking them from using the same or similar signs.³⁰⁹

p. 1034 ↵ The second principle is that in the United Kingdom (and the EU), trade mark applications need not be based on actual use at the time of filing, to preserve commercial flexibility. ‘Two of the key advantages are that it makes it easier for brand owners to obtain protection of their trade marks in advance of a commercial launch and that it makes the registration process simpler, faster and cheaper.’³¹⁰ This explains why revocation is only available after five years of continuous non-use. However, what is to be done about those applications where there was never any intention whatsoever to use the mark and the ‘commercial lead time’ reasoning does not apply? Should such marks be enforceable during the five-year grace period, when liable to be revoked immediately after it?

Precisely this issue arose in a dispute between Sky, the well-known television and broadband service provider, and SkyKick, which provided a cloud migration services for Microsoft users.³¹¹ Sky had a strong case on infringement, initiated within the five-year grace period, so SkyKick raised bad faith defensively, on the basis that Sky’s product specifications were overbroad in two ways.³¹² (i) Sky used broad categories—such as computer software—while in fact providing only a sub-set of products within those categories, or else filed for class headings including all goods under those headings. Computer software covers different market sectors and has different purposes, from games, to accounting, or medical diagnostics, with different customers and sales channels. There was no intention to use the mark across the full breadth of the term. (ii) Sky, a digital media provider, applied for several goods remote from its core business, including whips, bleaching preparations, fur, fire extinguishers, fuel, and Gladstone bags. SkyKick argued that any finding of bad faith should render the marks wholly invalid, as a severe sanction. This accounts for why they included the remote products, not directly relevant to the infringement proceedings. Alternatively, Skykick argued that bad faith should result in a pared-down specification, whereby computer software should be restricted to the types of software Sky actually developed.

On referral, the Court of Justice held that a lack of any intention to use the mark on the products specified *could* lead to a finding of bad faith, but only where this was coupled with ‘objective, relevant and consistent indicia tending to show’ one of two additional criteria was present: (i) undermining the legitimate interests of specific third parties or (ii) for purposes other than those falling within the recognized functions of trade marks.³¹³ A dishonest intention therefore had to be identified, not merely a lack of any intention to use the mark on certain products. Infringing the declaration under section 32(3) might constitute evidence of bad faith but was not a sufficient basis for establishing it.³¹⁴ Furthermore, where bad faith was established, it was not an entirely fatal taint. The appropriate response was partial invalidation for those categories in the specification where intention was lacking.³¹⁵

On its return to the High Court, it was found bad faith in relation to the overbroad categories was established.³¹⁶ There was no intention to use the mark across the full breadth of software types, coupled with no foreseeable commercial prospect of such uses. Additionally, Sky deliberately pursued a strategy of seeking

p. 1035 very broad protection, regardless of any commercial justification, and frequently exercised their rights in relation to ↵ compendious, improbable product specifications. In so doing, Sky was seeking exclusivity other than in accordance with the functions of trade marks.³¹⁷ It sought to weaponize trade mark law. Having established bad faith, the High Court then proceeded to pare down the claim for ‘software’, identifying viable sub-categories and adopting a methodology similar to revocation for non-use proceedings, after five years had expired.³¹⁸ This approach to broad headings was overturned by the Court of Appeal, on the basis that, unlike bleaching preparations or fire extinguishers, Sky did have a substantial and active business in software development. Lord Justice Floyd concluded that ‘the absence of a commercial rationale or strategy, if by that is meant a plan under which the mark is to be used for all goods or services within a category of the registration, is not relevant to the enquiry about bad faith’.³¹⁹ Partial use within a broad category was therefore sufficient to sustain the whole category, in order to preserve commercial autonomy. It would be up to invalidation applicants to trim the specification, via revocation for non-use, after the grace period. The Court of Appeal’s approach is therefore questionable. Where an applicant unilaterally chooses a broad specification and is thereby granted a broad legal monopoly, why should the cost of rendering it proportionate be passed on to competitors?

Besides partial use of a broad heading, tribunals have started to apply the (post-SkyKick) bad faith test to other situations, such as where an applicant seeks to ‘evergreen’ a trade mark by filing a new, largely overlapping application every few years, thereby attempting to generate a continually refreshed grace period where no use needs to be proved.³²⁰

4.4.2 Abuses of relationships

p. 1036 The second situation in which an applicant may be held to lack good faith is where, in applying for the mark, they are knowingly abusing a relationship with a third party. The most obvious example of such abuse of a relationship is where the registration would give rise to a breach of trust or contract between them. This might be the case where the applicant is an employee or an agent, a partner or former partner, or co-venturer.³²¹ If the applicant is aware that their behaviour is wrongful in law, then an honest person would likely regard that behaviour as ‘conduct falling short of acceptable commercial ↵ behaviour’.³²² However, an application may be treated as in bad faith where the abuse falls short of a breach of a legal relationship, for example where the parties were in pre-contractual negotiations as to a licensing arrangement and, when this fell through, the disappointed potential licensee registered the mark.³²³

4.4.3 Knowledge of third-party claims

Another situation where an application may be rejected on the basis that it was made in bad faith is where a party attempts to register a mark when it knows that a third party has some better claim to the reputation or goodwill attaching to the sign. However, bad faith should not be presumed too lightly, based merely on one party’s awareness of another’s mark, and may not even operate in situations where one party seeks to ‘free-ride’ off the goodwill of another’s mark.³²⁴

One important example of bad faith occurs where an applicant identifies a foreign business that is expanding and races to the Trade Marks Registry to register a UK mark. In *Ajit Weekly Trade Mark*,³²⁵ a trade mark had been granted for a Punjabi word (meaning ‘invincible’) in relation to printed matter. The owner of a Punjabi newspaper of the same name, which had been sold in India since 1959 and which was a ‘household name’ in the Punjab, applied to have the mark cancelled on the grounds that the application had been made in bad faith. The Examiner concluded that the proprietor of the mark had known of the Punjabi paper and its reputation, and that use of the mark in the United Kingdom would confuse the substantial Punjabi community present in the country. The Appointed Person affirmed the decision, holding that (as a matter of law) it was unnecessary to show that the applicant thought what he was doing was dishonest and that the Examiner had been entitled to reach a conclusion that an honest person would regard such behaviour as ‘conduct falling below acceptable standards’.

A second situation in which bad faith might exist is where an applicant seeks, through registration of a sign, to prevent a third party from continuing acts that they have already been doing and are entitled to do. The *Lindt* case³²⁶ can be seen as a possible example: if the goal of registration of the shape of the *Lindt* rabbit was primarily to prevent an existing competitor with established rights from continuing to sell its chocolate bunnies, then the application might have been regarded in bad faith (unless Lindt could establish that it had legitimate reasons of its own to seek registration, e.g. to prevent other third parties from making and selling counterfeit chocolate rabbits).

p. 1037 ↪ A similar argument was run unsuccessfully in the *Hotel Cipriani* case. This case concerned an action by the Venice hotel, Hotel Cipriani, against a London restaurant, Cipriani London. The claimant relied on its trade mark for CIPRIANI, for which it had applied in 1996. The defendant counterclaimed that the registration was invalid. At first instance, Arnold J conducted an elaborate examination of ‘bad faith’, rejecting the counterclaim.³²⁷ He particularly emphasized the claimant’s legitimate reasons to register and the ways in which its rights would be limited vis-à-vis earlier users and third parties.³²⁸ The Court of Appeal, equipped with the Court of Justice judgment in *Lindt*, affirmed.³²⁹ The application had not been made in bad faith because, being for hotels, it would not prevent any of the Cipriani family from carrying on any of their existing activities. The registration would not have conferred rights on the claimant that would implicate the freedoms of Villa Cipriani or Locanda Cipriani.

A finding of bad faith may also occur where a person seeks to appropriate for themselves the residual goodwill of a trader who has stopped trading.³³⁰ In *Jules Rimet Cup v. Football Association*,³³¹ the applicant sought to register an image of a lion in the English football strip, the World Cup logo from 1966, known as ‘World Cup Willie’. Before doing so, it had approached the Football Association to find out whether it still held rights in the mark, and had done searches and employed a trade mark attorney. As a consequence, it believed that it was entitled to use the image of ‘World Cup Willie’. Nevertheless, because it was knowingly taking advantage of the Football Association’s residual goodwill, Deputy Judge Wyand QC held that the application was not in good faith and that the Association’s opposition should succeed.

4.5 Special Emblems

Section 4 excludes from registration trade marks that consist of, or contain, ‘specially protected emblems’.

- p. 1038
- (i) Section 3(1) precludes registration of signs that include symbolic elements connected to the Crown. These include emblems such as the royal arms, the royal crown, and flags. The exclusion also covers any representation of any member of the royal family, or any other sign suggesting that the applicant has royal patronage.
 - (ii) Section 3(2) excludes various national flags—that is, the Union Flag and the flags of the various British nations. Here, the criterion is that their use would be either misleading or grossly offensive.
 - (iii) Section 3(3) has a similar exclusion for international emblems and flags that are protected under sections 57 and 58 of the Act.³³² Sections 57 and 58 contain a similar list of excluded emblems, flags, etc., for other countries that are members of the Paris Union.
 - (iv) Section 3(4) restricts registration of marks that include coats of arms, subjecting trade marks to the rules of the law of arms.
 - (v) Section 3(5) also prohibits the registration of marks that consist of or contain a ‘controlled representation’ under the Olympic Symbol (Protection) Act 1995. These controlled representations include the Olympic and Paralympic symbols, mottos, and various protected words (‘Olympics’, ‘Paralympics’, ‘Olympiad’, ‘Olympian’, etc.).³³³

Notes

¹ See also TMD 2015, Art. 4; EUTMR 2017, Art. 7. Until 31 December 2020, decisions based on these provisions (and their predecessors) are still relevant.

² This is the chief contrast with ‘relative’ grounds, discussed in Chapter 38. An absolute ground cannot, in general, be overcome by demonstrating the ‘consent’ of the right holder to registration. For exceptions, relating to state emblems and, possibly, geographical indications, see section 4.3 and section 4.5.

³ *Sat. 1 Satellitenfernsehen v. OHIM*, Case C-329/02P [2004] ECR I-8317, [25].

⁴ TMA 1994, s. 47. A registered mark may be challenged at any stage by any person, by application to the UK Registrar.

⁵ See J. Schovsbo and T. Riis, ‘Public Policy Limitations on Trademark Subject Matter: An EU Perspective’ in Calboli and Ginsburg, 241; WIPO ‘Grounds for Refusal of all Types of Marks’, 15 Feb. 2010 (SCT/23/2).

⁶ *Red Bull v. Sun Mark* [2012] EWHC 1929 (Ch), [135]. See also section 4.4 of this chapter on bad faith.

⁷ The TMD and EUTMR absolute grounds provisions are derived from Paris, Art. 6*quinquies* (2). See also TRIPS, Art. 15(2).

⁸ *Linde, Winward Industries, Rado Watch*, Cases C-53/01, C-54/01, and C-55/01 [2003] ECR I-3161, [45], [67]; *Société des Produits Nestlé v. Mars* [2003] EWCA Civ 1072, [2003] ETMR (101) 1235, 1250, [42] (although the grounds overlap, they are independent and have to be separately examined).

⁹ *SAT.1 v. OHIM*, Case C-329/02 [2004] ECR I-8317, [25]; *Strigl and Securvita*, Cases C-90/11 and C-91/11, EU:C:2012:147, [22]. For example, a lack of distinctiveness under (b) relates to the inability to satisfy the essential, origin-indicating function of a trade mark. Signs which are descriptive under (c) should be freely available for all traders offering such products.

¹⁰ *Société des Produits Nestlé v. Cadbury*, Case C-215/14, EU:C:2015:604, [2015] *ETMR* (50) 1141, [62].

¹¹ It has been argued that the system might be more exacting if the Registry viewed the mark in the context of its actual or proposed use: Kerly, [2–048]. The courts do look at such use in the context of assessing infringement (see Chapter 38, section 2.3.1, and Chapter 40, section 4), so it is a fair question. The mark as used was historically the starting point for assessing the object of protection in use-based systems like that of the United States.

¹² The ‘average consumer’ is a pivotal figure in trade mark law, akin to the ‘person skilled in the art’ in patent law. For the history of the ‘average consumer’, see J. Davis, ‘Locating the Average Consumer: His Judicial Origins, Intellectual Influences and Current Role in European Trade Mark Law’ [2005] *IPQ* 183. See also J. Davis, ‘Revisiting the Average Consumer: An Uncertain Presence in Trade Mark Law’ [2015] *IPQ* 15; G. B. Dinwoodie and D. S. Gangjee, ‘The Image of the Consumer in European Trade Mark Law’, in D. Leczykiewicz and S. Weatherill (eds), *The Image(s) of the Consumer in EU Law* (2015), 339; K. Weatherall, ‘The Consumer as the Empirical Measure of Trade Mark Law’ (2017) 80 *MLR* 57; R. D. Lausten, *The Average Consumer in Confusion-based Disputes in European Trademark Law and Similar Fictions* (2020).

¹³ *Linde A, Winward Industries, Rado Watch*, Cases C-53/01, C-54/01, and C-55/01 [2003] *ECR I*–3161, [41]; *Société des Produits Nestlé v. Mars* (‘Have a Break’) [2004] *FSR* (2) 16, [23].

¹⁴ This is the approach adopted for infringement analysis, where less attentive consumers are deemed to be more easily confused. See Fhima and Gangjee, 134–59. However, this is less applicable to distinctiveness assessment. See e.g. *Smart Technologies*, Case C-311/11P, EU:C:2012:460, [48] (‘it does not necessarily follow that a weaker distinctive character of a sign is sufficient [for registration] where the relevant public is specialist’).

¹⁵ *Teva Pharmaceutical Industries v. EUIPO*, Case T-696/19, EU:T:2020:329, [19], [26].

¹⁶ UK IPO, *Foreign Descriptive Use: Interpretation of the Internet and Registrability of Non-English Words* (May 2007) PAN 1/07. See *Topsy Trademarks v. Cofra*, BL O/092/11 (2 Mar. 2011); *UK Malayalee Matrimony’s Application*, BL O/788/21, [27] (where average consumers have a basic understanding of foreign words, this is considered relevant). Contrast the stricter US position: *Otokoyama v. Wine of Japan Import*, 175 F.3d. 266 (2nd Cir. 1999).

¹⁷ *Koninklijke Nederland v. Benelux-Merkenbureau*, Case C-363/99 [2004] *ECR I*–1619, [99]; *Campina*, Case C-265/00 [2004] *ECR I*–1699, [40].

¹⁸ *Procter & Gamble v. OHIM (Baby Dry)*, Case C-383/99P [2001] *ECR I*–6251; *Campina*, Case C-265/00 [2004] *ECR I*–1699, [37].

¹⁹ See *Wewi Mobile v. EUIPO*, Case T-601/18, EU:T:2019:510 (relevant public included a technical public, who would understand the abbreviation ‘fi’ in FI NETWORK as an abbreviation for ‘fast infoaset’, which is a standard system of file compression associated with the products being applied for. This made the sign descriptive.).

²⁰ *Strigl and Securvita*, Cases C-90/11 and C-91/11, EU:C:2012:147 (MULTI MARKETS FUND MMF); *Flexi*, Case T-352/12, EU:T:2014:519.

²¹ TMA 1994, ss 37 (examination), 38(3) (observations). In the United Kingdom, absolute objections can be raised in opposition proceedings by any person: TMA 1994, s. 38(2).

²² *Imagination Technologies v. OHIM*, Case C-542/07P [2009] *ECR I*–4937; *OHIM v. Froch Touristick*, Case C-332/09P [2010] *ECR I*–49. The Max Planck Institute proposed (without success) that this be altered to the date of examination: Max Planck Institute, *Study on the Overall Functioning of the Community Trade Mark System* (2011), 79, [2.60].

²³ TMD 2015, Art. 7; *Koninklijke Nederland v. Benelux-Merkenbureau*, Case C-363/99 [2004] ECR I-1619, [112]–[117]. See UK IPO, Partial Refusal (2012) TPN 1/2012.

²⁴ See *salesforce.com v. EUIPO*, Case T-134/15, EU:T:2016:366 (SOCIAL.COM rejected across a range of social media products).

²⁵ *Koninklijke Nederland v. Benelux-Merkenbureau*, Case C-363/99 [2004] ECR I-1619, [33]–[37].

²⁶ *Wrigley (Doublemint)*, Case C-191/01P [2003] ECR I-12447, [AG56]–[AG57] (AG Jacobs); *Nichols v. Registrar of Trade Marks*, Case C-404/02 [2004] ECR I-8499, [AG34] (AG Colomer).

²⁷ *British Sugar v. James Robertson* [1996] RPC 281, 305; *Digipos Store Solutions Group v. Digi International* [2008] EWHC 3371 (Ch), [2008] RPC (24) 591 (endorsed, but with the caveat that ‘state of the register’ evidence, showing a number of independently owned marks with the prefix DIGI, was relevant); *Fromageries v. J Sainsbury* [2019] EWHC 3454 (Ch), [2020] RPC (3) 85, [23]–[29] (HHJ Hacon endorsing the *British Sugar* approach).

²⁸ *Bio-ID*, Case C-37/03P [2005] ECR I-7975, [61]–[63]. If a mark descriptive under Art. 7(1)(c) is necessarily devoid of distinctive character under Art. 7(1)(b)—on which, see *Campina*, Case C-265/00 [2004] ECR I-1699, [19]—is it logical to say that the public interest underpinning Art. 7(1)(c) is not relevant under Art. 7(1)(b)? See further Max Planck Institute, *Study on the Overall Functioning of the Community Trade Mark System* (2011), 58, [1.48].

²⁹ *Linde, Winward Industries, Rado Watch*, Cases C-53/01, C-54/01, and C-55/01 [2003] ECR I-3161, [47].

³⁰ *KPN Nederland*, Case C-363/99 [2004] ECR I-1619, [34].

³¹ *Linde, Winward Industries, Rado Watch*, Cases C-53/01, C-54/01, and C-55/01 [2003] ECR I-3161, [41]. For a summary of the inherent distinctiveness principles, see *OHIM v. BORCO-Marken-Import*, Case C-265/09P [2010] ECR I-08265, [29]–[33].

³² *AS v. Deutsches Patent- und Markenamt*, Case C-541/18, EU:C:2019:725.

³³ *Ibid.*, [23]–[30] (emphasis added). The referring court had found that it is usual to place the mark on both the exterior of the goods and the labels sewn on the inside of them, so each context of use should be considered.

³⁴ *Wirex v. Cryptocarbon Global* [2021] EWHC 617 (IPEC), [2021] ETMR (35) 659, (CRYPTOBACK for financial and software services, used for a credit card scheme providing crypto currency rewards, survived a devoid of distinctiveness challenge).

³⁵ *Nichols v. Registrar*, Case C-404/02 [2004] ECR I-8499, [43].

³⁶ *Libertel Groep v. Benelux-Merkenbureau*, Case C-104/01 [2003] ECR I-3793.

³⁷ *Global Brand Holdings v. EUIPO*, Case T-503/19, EU:T:2020:183, [45]–[49] (the sign XOXO for goods such as cosmetics and clothes, often gifted as tokens of affection, meant ‘hugs and kisses’ and would be seen merely as a promotional message by the younger members of the relevant public).

³⁸ *Sat. 1 v. OHIM*, Case C-329/02P [2004] ECR I-8317, [41].

³⁹ *Ibid.*, [35]–[36].

⁴⁰ *Hickies v. EUIPO*, Case T-573/18, EU:T:2020:32, [64] (three-dimensional mark consisting of a shoe lace); *Muratbey Gida Sanayi ve Ticaret v. EUIPO*, Case T-570/19, EU:T:2020:127, [16] (shape of twisted cheese strips).

- ⁴¹ *Sat. 1 Satellitenfernsehen GmbH v. OHIM*, T 323/00 [2002] ECR II-2839, [35] (not discussed on appeal); *Henkel v. OHIM*, Case T-393/02 [2004] ECR II-4115, [42]; *Nestlé v. Mars* [2003] ETMR (101) 1235, [23].
- ⁴² *Ruwido Austria v. EUIPO*, Case T-649/18, EU:T:2019:585, [46] (in French).
- ⁴³ For a representative statement in relation to product packaging, see *August Storck v. EUIPO*, Case C-417/16P, EU:C:2017:340, [33]–[36].
- ⁴⁴ *Henkel v. OHIM*, Cases C-456/01P and C-457/01P [2004] ECR I-5089; *Sat. 1 v. OHIM*, Case C-329/02P [2004] ECR I-8317, [36].
- ⁴⁵ *In re Bongrain's Application* [2004] EWCA Civ 1690, [2005] RPC (14) 306, [24] (refusing to accept that the 'depletion' public interest is confined to colour marks). AG Szpunar argued against such a limitation in *Christian Louboutin v. Van Haren Schoenen*, Case C-163/16, EU:C:2017:495.
- ⁴⁶ See TMDN, *Common Communication on the Common Practice of Distinctiveness—Figurative Marks containing descriptive/non-distinctive words* (2 Oct. 2015).
- ⁴⁷ *Andreas Hauzenberger v. EUIPO*, Case T-349/18, EU:T:2019:495, [62] (word (TURBOPERFORMANCE) and figurative element (tachometer for measuring speed) mutually reinforced a lack of distinctiveness); *APEDA v. EUIPO, Burraq Travels*, Case T-361/18, EU:T:2019:777 (figurative elements were so common or stereotypical that they could not compensate for the descriptiveness of the words SIR BASMATI RICE for a variety of rice).
- ⁴⁸ UK IPO, *Letter and Numeral Marks* (May 2006) PAN 10/06; *Cain Cellars v. OHIM*, Case T-304/05 [2007] ECR II-112*, [22] (pentagon shape for wine would not be perceived as a mark); *Evonik v. OHIM*, Case T-499/09 [2011] ECR II-225*, [28] (rectangle with a convex side would be understood as ornamental or decorative rather than as conveying a trade mark message).
- ⁴⁹ *OHIM v. BORCO-Marken-Import*, Case C-265/09P [2010] ECR I-08265.
- ⁵⁰ *Agencja Wydawnicza Technopol v. OHIM*, Case C-51/10P [2011] ECR I-1541 (application for '1000' was rejected since it could indicate the number of pages or puzzles included for periodicals including puzzle-related magazines).
- ⁵¹ *The Smiley Company v. OHIM*, Case T-139/08, EU:T:2009:364, (representation of half of a smiley smile); *Carsten Bopp v. EUIPO*; Case T-460/17, EU:T:2018:816 (blue octagon); *Bayer Intellectual Property v. EUIPO*, Case T-123/18, EU:T:2019:95 (such a simple heart outline that even the specialized medical public with a high degree of attention would not regard it as a mark).
- ⁵² *Libertel*, Case C-104/01 [2003] ECR I-3793.
- ⁵³ *Ibid.*, [65].
- ⁵⁴ *Ibid.*, [54]–[55].
- ⁵⁵ *Ibid.*, [66]. An example of such an exceptional situation, with a narrow and specialized product specification, is *KWS Saat v. OHIM*, T-173/00 [2002] ECR II-3843 (CFI), *aff'd* Case 447/02P [2004] ECR I-10107.
- ⁵⁶ *Enercon v. EUIPO, Gamesa Eólica*, Case T-36/16, EU:T:2017:295 (shades of green on wind energy convertors indicating ecological advantages of this form of energy).
- ⁵⁷ *Deutsche Bahn v. OHIM*, Case C-45/11P, EU:C:2011:808 (upholding EUIPO's rejection of a horizontal combination of red and light grey for rail transport services, given the use of red and white signalling on railway barriers and road signs).

⁵⁸ *Glaxo Group v. EUIPO*, Case T-187/19, EU:T:2020:405.

⁵⁹ Summarized in *The London Taxi Corporation v. Frazer-Nash Research* [2016] EWHC 52 (Ch), [2016] FSR (20) 579, [165]–[172]; aff'd on appeal [2017] EWCA Civ 1729, [2018] FSR (7) 148, [37]–[42]; *Jaguar Land Rover v. Ineos Industries* (O/589/19), [32]–[34].

⁶⁰ *Linde, Winward Industries, Rado Watch*, Cases C-53/01, C-54/01, and C-55/01 [2003] ECR I-3161, [42], [46], [49]; *Freixenet v. OHIM*, Cases C-344–345/10P [2011] ECR I-10205, [46].

⁶¹ *Mag Instrument v. OHIM*, Case C-136/02 P [2004] ECR I-9165, [30]; *Deutsche SiSi-Werke v. OHIM*, Case C-173/04 P [2006] ECR I-551, [28]; *Storck v. OHIM*, Case C-25/05 P [2006] ECR I-5719, [27].

⁶² *Henkel*, Case C-218/01 [2004] ECR I-1725, [49]; *Henkel v. OHIM*, Cases C-456/01P and C-457/01P [2004] ECR I-5089, [39]; *Mag Instrument*, Case C-136/02P [2004] ECR I-9165, [32].

⁶³ *Mag Instrument v. OHIM*, Case C-136/02 P [2004] ECR I-9165, [32]; *Brita v. EUIPO*, Case T-213/18, EU:T:2019:435 (sloping shape of a tap merely a variant); *Tecnica Group v. EUIPO, Zeitneu*, Case T-483/20, EU:T:2022:11 (persuasive only) (features of 'moon boots' were minor variants for the sector consisting of comfortable, after-ski footwear).

⁶⁴ *Eos Products Sàrl v. EUIPO*, Case T-489/20, EU:T:2021:547, [67]; appeal denied Case C-672/21 P, EU:C:2022:81 (persuasive only) (shape of spherical or egg-shaped container for lip balm was a mere variant).

⁶⁵ *Hoechstmass Balzer v. EUIPO*, Case T-691/17, EU:T:2018:394 (shape of a measuring tape case had only minor differences from sectoral norms).

⁶⁶ *Fränkischer Weinbauverband v. EUIPO*, Case T-68/18, EU:T:2019:677. See also *Cognac Ferrand v. EUIPO*, Case T-172/19, EU:T:2020:202.

⁶⁷ *Bongrain Trade Mark Application* [2004] EWCA Civ 1690, [2005] RPC (14) 306, [25].

⁶⁸ See *London Taxi* [2016] EWHC 52 (Ch), [2016] FSR (20) 579, [172]; on appeal [2017] EWCA Civ 1729, [2018] FSR (7) 148, [41]–[42].

⁶⁹ *Ibid.*, [45]. See also *Jaguar Land Rover v. Ineos* [2020] EWHC 2130 (Ch), [2020] FSR (38) 1011 (all passenger vehicles formed the sector, as opposed to the narrower category of 4x4 vehicles).

⁷⁰ *Erdinger Weißbräu Werner Brombach v. EUIPO*, Case T-857/16, EU:T:2017:754 (glassware sector had a multitude of variations, such that the applicant's large glass evoking a football shape towards the top would be seen as yet another variation); *Gibson Brands v. EUIPO, Wilfer*, Case T-340/18, EU:T:2019:455, [31], [46]–[50] (considerable variations existed for guitars, such that inherent distinctiveness was not established for the Gibson Flying V guitar shape).

⁷¹ *Brasserie St Avold v. EUIPO*, Case T-862/19, EU:T:2020:561, [56].

⁷² *Skullduggery Rum v. Globefill* [2020] ETMR (9) 143 (EUIPO Cancellation Division) (crystal skull vodka bottles had inherent distinctiveness, notwithstanding variations in the sector which included other head shapes); *Guerlain v. EUIPO*, Case T-488/20, EU:T:2021:443 (persuasive only) (an objectively established, unusual visual effect created by a lipstick case could contribute towards distinctiveness, even after taking sectoral variations into account).

⁷³ *Jaguar Land Rover v. Ineos* [2020] EWHC 2130 (Ch), [2020] FSR (38) 1011, [18]–[19], [25], [28] (endorsing the Registry Hearing Officer's approach, which discounted the evidence of vehicle design experts and trade journalists).

⁷⁴ EUIPN, CP9: *Common Communication Distinctiveness of Three-dimensional Marks (Shape Marks) Containing Verbal and/or Figurative Elements When the Shape is Not Distinctive in Itself* (2020).

- ⁷⁵ Gangjee, 'Paying the Price for Admission: Non-Traditional Marks Across Registration and Enforcement', in Calboli and Senftleben (2018), 83–8.
- ⁷⁶ *Jaguar Land Rover v. OHIM*, Case T-629/14, EU:T:2015:878.
- ⁷⁷ See Chapter 39, section 2; this chapter, section 4.4.
- ⁷⁸ *Freixenet v. OHIM*, Cases C-344/10 P and C-345/10 P, EU:C:2011:680, [42].
- ⁷⁹ *Ibid.*, [45]–[46]. *Fränkischer Weinbauverband v. EUIPO*, Case T-68/18, EU:T:2019:677, [17] (application for the shape of the ellipsoidal Bocksbeutel bottle). See C. Ramirez-Montes, 'The Elusive Distinctiveness of Trade Dress in EU Trademark Law' (2019) 34 *Emory Int L Rev* 277.
- ⁸⁰ *Brasserie St Avold v. EUIPO*, Case T-862/19, EU:T:2020:561, [37] (shape of a dark bottle with a white label resembling a napkin folded into a triangle or bishop's mitre not sufficiently distinctive).
- ⁸¹ *Eurocermex v. OHIM*, Case C-286/04P [2005] *ECR I*–5797 (Corona beer), affirming Case T-399/02 [2004] *ECR II*–1391. Although not the original image submitted by Eurocermex, this photograph gives an idea of what Eurocermex was trying to register.
- ⁸² *Deutsche Sisi-Werke. Betriebs v. OHIM*, Case C-173/04P [2006] *ECR I*–551.
- ⁸³ *Henkel v. OHIM*, Cases C-456/01 P and C-457/01 P, EU:C:2004:258, [39]; *Voss of Norway v. OHIM*, Case C-445/13 P, EU:C:2015:303, [81] (most bottles on the market had a cylindrical section and a cap made of a different colour and material from the body, so the applicant's shape did not depart significantly from these norms).
- ⁸⁴ *Storck v. OHIM*, Case C-25/05 P [2006] *ECR I*–5719, [30]–[33].
- ⁸⁵ *Nestlé Waters France v. OHIM*, Case T-305/02 [2003] *ECR II*–5207 (transparent bottle); *Henkel v. OHIM*, Case T-393/02 [2004] *ECR II*–4115 (crystalline or upturned pear shape for detergents and cleaning products). See also *EUIPO v. Wajos*, Case C-783/18 P, EU:C:2019:1073 (glass amphora bottle shape with a pronounced bulge sufficiently distinctive, since it produced an aesthetic effect).
- ⁸⁶ *Aktiebolaget Ostgotatrafiken v. Patent-och registreringsverket*, Case C-456/19, EU:C:2020:813, [2021] *ETMR* 1. These were only position marks in a broad sense, generally applied to the exterior of buses and not requiring specific positioning in a recurring place on a product. See section 3.2.8 of this chapter for position marks in the narrow sense.
- ⁸⁷ *Ibid.*, [37].
- ⁸⁸ *Elvis Presley Trade Marks* [1997] *RPC* 543, 558.
- ⁸⁹ *Cadbury Bros's Application* (1915) 32 *RPC* 9, 12.
- ⁹⁰ *Nichols v. Registrar*, Case C-404/02 [2004] *ECR I*–8499, [25]–[26]. Registration of the mark NICHOLS for vending machines was confirmed on 26 May 2006: TM 2241893.
- ⁹¹ *Ibid.*, [31]. The Court of Justice referred to the defence in Art. 6(1)(a).
- ⁹² *Ibid.*, [AG46] (AG Colomer); *Barbara Becker v. Harman International Industries*, Case C-51/09P [2010] *ECR I*–5805, [36] (in analysing relative grounds, the commonness of a surname was relevant to its distinctive character); *Oska's Trade Mark Application* [2005] *RPC* (20) 525, [27]–[28].
- ⁹³ [2005] *RPC* (20) 525 (AP, Arnold QC), [27]–[28].

⁹⁴ [1999] *RPC* 567; [1997] *RPC* 543, 558. Cf. *Annette von Droste zu Hülshoff Stiftung*, 33 W (Pat) 550/11 (2 July 2013) (German Federal Patent Court held that the mere fact that a mark comprised the name of a famous person—here, the early nineteenth-century novelist Annette von Droste-Hülshoff—did not mean that it was devoid of distinctive character).

⁹⁵ *Elvis Presley Trade Marks* [1997] *RPC* 543; [1999] *RPC* 567 (CA), 585. Although decided under the 1938 Act, the reasoning, relating to an issue of fact, seems applicable under the 1994 Act.

⁹⁶ *Elvis Presley Trade Marks* [1997] *RPC* 543, 558.

⁹⁷ *Ibid.* In *re Applications by the Estate of the Late Diana, Princess of Wales*, BL O/37/02 (Diana signature registrable, signatures being ‘a unique sign of authenticity’).

⁹⁸ *Elvis Presley Trade Marks* [1999] *RPC* 567 (CA), 586, although the Court presumed, at 576, that the signature was authentic and ultimately the application was refused on relative grounds: see 587.

⁹⁹ *Nestlé v. Mars* [2003] *EWCA Civ* 1072, [2003] *ETMR* (101) 1235 (rejecting HAVE A BREAK for confectionery).

¹⁰⁰ For examples, see Bently and Sherman (2014), 944, n. 81; EUIPO, *Examination Guidelines*, Part B, Section 4, Chapter 3, [5] (‘Slogans: Assessing Distinctive Character’). See also J. Davis and A. Durant, ‘To Protect or not to Protect? The Eligibility of Commercially Used Short Verbal Texts for Copyright and Trade Mark Protection’ [2011] *IPQ* 345.

¹⁰¹ *OHIM v. Erpo Möbelwerk*, Case C-64/02P [2004] *ECR I*–10031, [35].

¹⁰² *Ibid.*

¹⁰³ *Audi v. OHIM*, Case C-398/08P [2010] *ECR I*–535, [47]. *Pro-Aqua International v. OHIM*, Case T-133/13, EU:T:2015:46 (WET DUST CAN’T FLY was sufficiently fanciful—since dust is usually dry—to be distinctive).

¹⁰⁴ *Oatly v. EUIPO*, Case T-253/20, EU:T:2021:21 (persuasive only). Oatly was also successful in registering WOW NO COW in the UK: *Oatly’s Trade Mark Application*, BL O/862/21.

¹⁰⁵ Case C-398/08P [2010] *ECR I*–535, [47].

¹⁰⁶ The slogan had been registered for cars on the basis of acquired distinctiveness. *Ibid.*, [5].

¹⁰⁷ *Ibid.*, [44]. At [59], the Court suggests that the mark is not devoid of distinctive character for these goods, because it is well known in relation to cars. This surely is inconsistent with the general principle that a mark is assessed independently for each category of goods or services.

¹⁰⁸ *Rheinfelsquellen H. Hovelmann G v. OHIM*, Case T-28/06 [2007] *ECR II*–4413; *IT Luggage v. Samsonite IP Holdings*, BL O/399/21 (WORLD’S LIGHTEST WIDE HANDLE DESIGN descriptive for wide handled luggage).

¹⁰⁹ *Globo Comunicação e Participações v. EUIPO*, Case T-408/15, EU:T:2016:468.

¹¹⁰ *Ibid.*, [41]–[46], [52]–[53].

¹¹¹ See section 3.2.3 of this chapter.

¹¹² *Ardagh Metal Beverage Holdings v. EUIPO*, Case T-668/19, EU:T:2021:420 (persuasive only), [25]–[32]. The Court rejected the Board of Appeal’s reasoning that the sound lacked distinctiveness since it was only encountered after the product was bought and during consumption, [55]–[58].

¹¹³ EUTMIR, Art. 3(3)(d) (as an illustrative definition); see also *Neoperl v. EUIPO*, Case T-669/18, EU:T:2019:788, [30].

¹¹⁴ *Margarete Steiff v. OHIM*, Cases T-433 and T-434/12, EU:T:2014:8 (buttons were commonly—and decoratively—used for these products and would not attract attention). See also *K-Swiss v. OHIM*, Case T-3/15, EU:T:2015:937 (five parallel stripes on the side of a shoe not distinctive).

¹¹⁵ *X Technology Swiss v. OHIM*, Case T-547/08, EU:T:2010:235, aff'd Case C-429/10 [2011] ECR I-00076 (such use was likely to be perceived as decorative).

¹¹⁶ *Leifheit v. EUIPO*, Case T-184/17, EU:T:2018:537 (four light green, square-shaped elements coincided with the usual position for the feet of weighing scales, ensuring their stability, and thereby did not depart significantly from sectoral norms); *Neoperl v. EUIPO*, Case T-669/18, EU:T:2019:788 (concluding it is appropriate to apply the 'departs significantly' test when the specifically positioned sign merges with an aspect of the designated product).

¹¹⁷ C. Gommers and E. De Pauw, "'Red Sole Diaries': A Tale on the Enforcement of Louboutin's Position Mark' (2016) 11 *JIPLP* 258; C. Ramirez-Montes, 'Louboutin Heels and the Competition Goals of EU Trade Mark Law' (2019) 19 *UIC Rev Intell Prop L* 38.

¹¹⁸ E.g. in EUTM No. 008845539.

¹¹⁹ *Christian Louboutin v. Van Haren Schoenen*, Case C-163/16, EU:C:2017:495 (AG Szpunar concluded the mark was sufficiently three-dimensional for the specific shape mark policy exclusions to apply). Despite a second opinion confirming the AG's reasoning (EU:C:2018:64) the Grand Chamber ultimately held that the sign was not a shape whereupon the exclusions did not apply: EU:C:2018:423.

¹²⁰ Compare *Société Christian Louboutin et Monsieur Christian Louboutin v. Société Zara France*, Cour de cassation, chambre commerciale, No. 11-20724, 30 May 2012 (a variant of this mark was insufficiently distinctive, since it was a concept relating to contrasting colours and not a mark) with *Christian Louboutin* R 2272/2010-2 (OHIM, Second BoA) (the mark is inherently distinctive as an EUTM).

¹²¹ *Deichmann v. EUIPO, Munich SL*, Case C-223/18 P, EU:C:2019:471 (rejecting a revocation application on the basis that the figurative mark had only been used as a position mark).

¹²² *Tefal's Trade Mark Application*, BL O/587/20.

¹²³ *Ibid.*, [23]–[25].

¹²⁴ Another way of viewing this is as an unjustified restriction on the freedom of commercial expression for other traders. See L. Ramsey and J. Schovsbo, 'Mechanisms for Limiting Trade Mark Rights to Further Competition and Free Speech' (2013) 44 *IIC* 671.

¹²⁵ *Adidas v. Marca Mode*, Case C-102/07 [2008] ECR I-2439, [23], [AG27]–[AG45].

¹²⁶ Cases C-108/97 and C-109/97 [1999] ECR I-2779.

¹²⁷ On the public interest across registration, validity, and infringement, see I. Fhima, 'The Public Interest in European Trade Mark Law' [2017] *IPQ* 311.

¹²⁸ *Windsurfing*, Cases C-108/97 and C-109/97 [1999] ECR I-2779, [30].

¹²⁹ *Ibid.*, [25].

¹³⁰ *Ibid.*, [26].

¹³¹ *Procter & Gamble v. OHIM (Baby Dry)*, Case C-383/99P [2001] ECR I-6251, [2002] *ETMR* (3) 22.

¹³² *Wrigley (Doublemint)*, Case C-191/01P [2003] ECR I-12447 (AG); *Linde AG, Winward Industries, Rado Watch*, Cases C-53/01, C-54/01, and C-55/01 [2003] ECR I-3161, [73]; *Campina*, Case C-265/00 [2004] ECR I-1699, [34]–[36]; *KPN Nederland*, Case C-363/99 [2004] ECR I-1619.

¹³³ The approach to the descriptiveness objection was summarized by Arnold J in *Starbucks (HK) v. British Sky Broadcasting Group* [2012] EWHC 3074 (Ch), [2013] FSR (29) 623, [91]–[92].

¹³⁴ *Frank v. Nike Retail* [2018] EWHC 1893 (Ch), [2018] FSR (35) 1020 (LNDR may have been a geographically descriptive abbreviation for London, but it did not readily describe any characteristics of the clothing to which it was applied).

¹³⁵ *Puma v. Nike Innovate* [2021] EWHC 1438 (Ch), [2021] ETMR (44) 853 (FOOTWARE was a sufficiently clever play on words for computer hardware and software used in ‘smart’ footwear, to overcome a descriptiveness objection).

¹³⁶ *Soho Brewing v. West End Drinks*, BL O/673/21 (the circular device element surrounding SOHO BREWING was sufficient to ensure that the mark was not exclusively descriptive of geographical origin); Cf. *Eggy Food v. EUIPO*, Case T-287/20, EU:T:2021:46 (the visual element, representing the curve of an egg, would not divert the relevant public from the descriptive message in EGGY FOOD for protein supplements, eggs, and egg-based dishes).

¹³⁷ *Castel Frères v. OHIM*, Case C-622/13P, EU:C:2015:297, [71]–[80] (minor spelling change insufficient to prevent geographically descriptive connotations for CASTELL). See also *Zitro IP v. OHIM*, Case T-318/15, EU:T:2016:1 (despite the stylized font, TRIPLE BONUS would still convey to consumers the notion of games of chance where earnings could be tripled).

¹³⁸ *Procter & Gamble v. OHIM (Baby Dry)*, Case C-383/99P [2001] ECR I-6251, [2002] ETMR (3) 22, [40].

¹³⁹ Case C-265/00 [2004] ECR I-1699.

¹⁴⁰ *Ibid.*, [41]. See also *KPN Nederland*, Case C-363/99 [2004] ECR I-1619.

¹⁴¹ *Wrigley (Doublemint)*, Case C-191/01P [2003] ECR I-12447.

¹⁴² *Streamserve*, Case T-106/00 [2002] ECR II-723, [42].

¹⁴³ See e.g. *Revolution v. EUIPO*, Case T-654/14, EU:T:2016:268 (notwithstanding its other political meanings, REVOLUTION would convey the sense of ‘new and innovative’ for financial services. It was laudatory, emphasizing the positive qualities of the services provided.).

¹⁴⁴ *Windsurfing*, Cases C-108/97 and C-109/97 [1999] ECR I-2779, [31].

¹⁴⁵ *Wrigley (Doublemint)*, Case C-191/01P [2003] ECR I-12447, [32].

¹⁴⁶ *DaimlerChrysler v. OHIM*, T-355/00 [2002] ECR II-1939.

¹⁴⁷ *Giorgio Armani v. Sunrich Clothing* [2010] EWHC 2939 (Ch), [52]–[53]; UK IPO, *Partial Refusals* (2011) PAN 2/11; UK IPO, *Partial Refusals* (2011) TPN 1/11. See Chapter 35, section 2.4, pp. 950–2.

¹⁴⁸ *Salesforce.com, Inc. v. EUIPO*, Case T-134/15, EU:T:2016:366.

¹⁴⁹ *KPN Nederland*, Case C-363/99 [2004] ECR I-1619, [102].

¹⁵⁰ Case C-51/10P [2011] ECR I-1541, [50].

¹⁵¹ See e.g. *DKV Krankenversicherung v. OHIM (Eurohealth)*, Case T-359/99 [2001] ECR II-1645, [35]–[36]. See also *Puma v. Nike Innovate* [2021] EWHC 1438 (Ch), [2021] ETMR (44) 853, [21] (referring to a ‘sufficiently direct and specific relationship between the sign and the goods and services in question to enable the public concerned immediately to perceive, without further thought, a description of one of the characteristics of the goods and services in question’).

¹⁵² *Dart Industries. v. OHIM*, Case T-360/00 [2002] ECR II-3867, [27] (ultraplus); *West (Eastenders) v. Fuller Smith & Turner* [2003] FSR (44) 816 (although the case was based on an application of *Baby Dry* and may need reviewing in the light of *Doublemint*).

¹⁵³ *Chung-Yuan Chang v. EUIPO, BSH Hausgeräte*, Case T-749/14, EU:T:2016:286, aff’d Case C-389/16P, EU:C:2016:876.

¹⁵⁴ At [37]–[47]. See also *Fissler v. EUIPO*, Case T-423/18, EU:T:2019:291. The General Court’s conclusion seems questionable. The test seems to be whether it is reasonable to believe that the sign will actually be recognized by the relevant class of consumers as a description of a product’s characteristics, which in turn must designate a property easily recognizable by those consumers. It should be a property which matters and will the sign be recognized as describing that property? See *BSH Bosch v. OHIM*, Case C-126/13 P, EU:C:2014:2065, [19]–[26].

¹⁵⁵ *Research Engineering & Manufacturing v. OHIM*, Case T-558/14, EU:T:2015:858, [50] (TRILOBULAR would evoke the nature and technical function of ‘metal threaded fasteners’ or screws); *Arçelik v. EUIPO*, Case T-364/18, EU:T:2019:355 (MICROGARDEN descriptive for machines and robotic tools used in gardening and agriculture, suggesting intensive cultivation in a small space).

¹⁵⁶ Cases C-53/01, C-54/01, and C-55/01 [2003] ECR I-3161.

¹⁵⁷ For an image, see [1990] RPC 341, 343.

¹⁵⁸ *Julius Sämaan v. Tetrosyl* [2006] EWHC 529 (Ch), [2006] FSR (42) 849, [39]–[40].

¹⁵⁹ *Universal Protein Supplements v. EUIPO*, Case T-335/15, EU:T:2016:579 (black silhouette of a body builder had a sufficiently direct link with nutritional supplements to be descriptive); cf. *Novartis v. EUIPO*, Cases T-678 and T-679/15, EU:T:2016:749 (stylized grey and green curves sufficiently abstract and would not be seen as representing a pill for pharmaceuticals).

¹⁶⁰ *Colart/Americas v. OHIM*, Case T-164/06 [2007] ECR II-116.

¹⁶¹ *Golf USA*, Case T-230/05 [2007] ECR II-23.

¹⁶² *PTV Planung*, Case T-302/03 [2006] ECR II-4039, aff’d Case C-512/06P [2007] ECR I-148.

¹⁶³ *Tegometall International v. OHIM*, Case T-458/05 [2007] ECR II-4721 (since they could be given the appearance of teak).

¹⁶⁴ *Deutsche Post Euro Express*, Case T-334/03 [2006] ECR II- 65, [25] (appeal lodged, but withdrawn). The case relies heavily on the discredited parts of *Baby-Dry*.

¹⁶⁵ *Diagnostiko v. OHIM*, Case T-7/10 [2011] ECR II-136*.

¹⁶⁶ *Yorkshire Copper Work’s Trade Mark Application* (1954) 71 RPC 150, 154.

¹⁶⁷ Cases C-108/97 and C-109/97 [1999] ECR I-2779.

¹⁶⁸ *Ibid.*, 2824–5, [29]–[31].

¹⁶⁹ *Ibid.*, 2825, [33].

¹⁷⁰ In the United States, this is referred to as the ‘goods/place association’.

¹⁷¹ Cases C-108/97 and C-109/97 [1999] *ECR* I-2779, 2826, [36].

¹⁷² *Savile Row Trade Mark* [1998] *RPC* 155.

¹⁷³ *Bundesverband Souvenir—Geschenke—Ehrenpreise v. EUIPO*, Case C-488/16 P, EU:C:2018:673. Cf. *Neuschwanstein* (8 Mar. 2012) I ZB 13/11 (BGH) (unregistrable as a German mark since the term referred to the castle as a national monument but not the commercial source of souvenirs).

¹⁷⁴ This may not be an approach that should be retained. See Chapter 1, section 6.

¹⁷⁵ *Eurolamb Trade Mark* [1997] *RPC* 279.

¹⁷⁶ *Nordic Sauna Trade Mark Application* [2002] *ETMR* (18) 210 (Thorley QC).

¹⁷⁷ *Tottenham Trade Mark* (6 Jan. 2003) (AP, Prof. Annand).

¹⁷⁸ *Procter & Gamble/Swedish Formula*, R 85/98–2 [1999] *ETMR* 559.

¹⁷⁹ *British Sugar v. Robertson* [1996] *RPC* 281; *Yorkshire Copper* (1954) 71 *RPC* 150, 154, 156.

¹⁸⁰ *Juan Moreno Marin. v. Abadia Retuerta*, Case C-139/16, EU:C:2017:518 (LA MILLA DE ORO, which is Spanish for the Golden Mile).

¹⁸¹ *Starbucks v. British Sky Broadcasting Group* [2013] *EWCA Civ* 1465, [2014] *FSR* (20) 422 (referring to ‘nowness’ as a characteristic of the service).

¹⁸² This is not included in Paris, Art. 6quinquies(B)(2), and thus may be construed *ejusdem generis*.

¹⁸³ Case C-498/01P [2004] *ECR* I-11349 (AG Jacobs) (no final judgment since the trade mark registration was subsequently withdrawn).

¹⁸⁴ It is notable that he considered that this was an essential characteristic of the goods—a contrast with the Court of Justice decision in *Koninklijke Nederland v. Benelux-Merkenbureau*, Case C-363/99 [2004] *ECR* I-1619, which indicated that the commercial significance of a characteristic was irrelevant when deciding whether it was excluded.

¹⁸⁵ *Psytech International v. OHIM*, Case T-507/08 [2011] *ECR* II-165*, [24].

¹⁸⁶ *Ibid.*, [41].

¹⁸⁷ [2006] *ETMR* (74) 1017 (AP, Arnold QC), [44].

¹⁸⁸ Distinctiveness seems to be more readily acquired for characters than the names of individuals. In a case concerning the 1930s cartoon character ‘Betty Boop’, Birss J found that the name and character were indicative of trade origin despite the fact that it might be equally possible for a consumer to ask in a shop for a ‘Betty Boop T-shirt’: *Hearst Holdings v. A.V.E.L.A.* [2014] *EWHC* 439 (Ch), [97], [108], [109]. The Judge emphasized that the issue is one of fact, and while there is no general rule, it may be easier to acquire distinctiveness in relation to a character: *ibid.*, [107]. On the facts, the reaction of the average consumer was ‘multi-faceted’—i.e., the image would be seen as aesthetic or decorative, but also as indicating trade origin. He rejected the attacks on the validity of the marks: *ibid.*, [140].

¹⁸⁹ [2007] *EWHC* 462 (Ch), [2007] *FSR* (20) 508 (device was devoid of distinctive character).

¹⁹⁰ These terms are not dissimilar to those of TMA 1994, s. 46, on revocation (on which, see Chapter 39, section 3), although the differences are worthy of note. This ground covers not merely names, but all signs, and applies where the mark is customary in the ‘current language’ (which arguably may not be confined to trade). For the view that there are two exclusions in s. 3(1)(d), one relating to customary language and another to custom in the bona fide practices of the trade, see *Backaldrin Österreich The Kornspitz Company v. Pfahnl Backmittel*, Case C-409/12, EU:C:2013:563 (AG Cruz Villalón), [AG56], although the issue was not mentioned in the judgment of the Court: EU:C:2014:130.

¹⁹¹ See *Merz & Krell*, Case C-517/99 [2001] ECR I–6959. See also *Psytech International v. OHIM*, Case T-507/08 [2011] ECR II–165*, [56]; *Backaldrin Österreich The Kornspitz Company v. Pfahnl Backmittel*, Case C-409/12, EU:C:2013:563 (AG Cruz Villalón), [AG55]; EU:C:2014:130.

¹⁹² *Nichols v. Registrar*, Case C-404/02 [2004] ECR I–8499, [AG43]; *Sat. 1 v. OHIM*, Case C-329/02P [2004] ECR I–8317, [AG21]–[AG23]. In the United States, these interests are overriding, so that a sign that is generic is unable to become a trade mark: *Abercrombie & Fitch v. Hunting World.*, 537 F.2d. 4 (2nd Cir. 1976).

¹⁹³ A more challenging situation is where the language is changing and a term is becoming more common or widespread in a sector to describe a product or service, without being universal: *Affinity Leasing*, BL O/522/20 (AFFINITY found not to be customary).

¹⁹⁴ *Alcon v. OHIM*, Case T-237/01 [2003] ECR II–411, aff’d on appeal Case C-192/03 [2004] ECR I–8993.

¹⁹⁵ *Backaldrin Österreich The Kornspitz Company v. Pfahnl Backmittel*, Case C-409/12, EU:C:2014:130 (also confirmed that a brand owner’s inactivity—in not preventing generic use—was a relevant factor when assessing generic status under revocation proceedings).

¹⁹⁶ *Psytech International v. OHIM*, Case T-507/08 [2011] ECR II–165*, [59].

¹⁹⁷ Case C-517/99 [2001] ECR I–6959, [36]–[40].

¹⁹⁸ *Ibid.*, [29].

¹⁹⁹ Advocate-General Colomer drew a distinction between Art. 3(1)(c), which he saw as concerned with ‘description’ by direct reference to characteristics, and Art. 3(1)(d), which was not so confined and did not specify the degree of association that must exist between the sign and the goods/services: *ibid.*, [AG48]–[AG50]. In his view, bravo—a mere expression of enthusiasm—would be registrable for typewriters, but not for sports clothing or services, because in the sporting field the term is ‘habitually used’ and, in bullfighting, it even refers to a characteristic of a fighting bull.

²⁰⁰ [2002] EWHC 467 (Ch), [2002] ETMR (76) 861, [52]; cf. *Score Draw v. Finch* [2007] EWHC 462 (Ch), [2007] FSR (20) 508, [45].

²⁰¹ The use to support this form of distinctiveness must have been prior to the date of the application: *Imagination Technologies v. OHIM*, Case C-542/07P [2009] ECR I–4937, [49], [51] (evidence of use of the mark after registration may be relevant as regards its situation prior to registration).

²⁰² It is not necessary to know the identity of the source; only that the product or service comes from a single source. This is sometimes termed the ‘anonymous source doctrine’.

²⁰³ *Windsurfing*, Cases C-108/97 and C-109/97 [1999] ECR I–2779, 2829, [48]; *Audi v. OHIM*, Case T-16/02 [2003] ECR II–5167, [50]. The interests of others are accommodated via specific exclusions (such as for shapes) or the defences in TMA 1994, s. 11.

²⁰⁴ The ability for marks to become registrable through use, provided for under the 1994 Act, is in contrast to the position in the 1938 Act, which held that certain marks could never become registrable irrespective of how distinctive they were ‘in fact’: *York TM* [1984] *RPC* 231.

²⁰⁵ Cases C-108/97 and C-109/97 [1999] *ECR* I-2779.

²⁰⁶ *Ibid.*, [46].

²⁰⁷ L. Anemaet, ‘The Public Domain Is Under Pressure—Why We Should Not Rely on Empirical Data When Assessing Trademark Distinctiveness’ (2016) 47(3) *IIC* 303.

²⁰⁸ *Société des Produits Nestlé v. Cadbury*, Case C-215/14, EU:C:2015:604; on referral from *Société des Produits Nestlé v. Cadbury* [2014] *EWHC* 16 (Ch), [2014] *FSR* (28) 591.

²⁰⁹ *Société des Produits Nestlé v. Cadbury*, Case C-215/14, EU:C:2015:604, [26].

²¹⁰ *Ibid.* EU:C:2015:395, [AG42], [AG55] (AG Wathelet).

²¹¹ *Ibid.*, [58], [67] (emphasis added).

²¹² *Ibid.*, [65].

²¹³ *Société des Produits Nestlé v. Cadbury* [2016] *EWHC* 50 (Ch), [2016] *FSR* (19) 557, [60] (emphasis added). Arnold J. interpreted the Court’s guidance as requiring that ‘a significant proportion of the relevant class of persons [should perceive] the relevant goods or services as originating from a particular undertaking *because of* the sign in question (as opposed to any other trade mark which may also be present)’, [57].

²¹⁴ *Ibid.*, [67]–[68]. By contrast, the General Court concluded that acquired distinctiveness had been acquired in the United Kingdom when assessing the registrability of the equivalent EUTM: *Mondelez v. EUIPO*, Case T-112/13, EU:T: 2016:735, [78]–[94]; upheld on appeal Case C-84/17P, EU:C:2018:596.

²¹⁵ *Société des Produits Nestlé v. Cadbury* [2017] *EWCA Civ* 358, [2017] *FSR* (34) 778, [82] (emphasis added).

²¹⁶ As a possible example of (quite literally) flagging up trade mark significance, see *Bonbonverpackung mit Fähnchen* (30 June 2016) Case No. 25 W (Pat) 33/13, German Federal Patent Court (BPatG) (an extruding ‘flag’ on a cough lozenge wrapper had been used since the 1920s with the claim ‘Only genuine with the flag’; it was clearly being used to indicate commercial source).

²¹⁷ G. Dinwoodie, ‘Non-Traditional Marks in Europe: Conceptual Lessons from their Apparent Demise’, www.ssrn.com <<http://www.ssrn.com>>.

²¹⁸ *Jaguar Land Rover v. Ineos Industries* [2020] *EWHC* 2130 (Ch), [2020] *FSR* (38) 1011.

²¹⁹ *Jaguar Land Rover v. Ineos Industries*, BL O/589/19.

²²⁰ *Jaguar Land Rover v. Ineos Industries* [2020] *EWHC* 2130 (Ch), [35]–[42].

²²¹ *Tefal’s Trade Mark Application*, BL O/587/20, [42]–[56] (unsuccessful claim that the red dot operated as a sub-brand alongside the TEFAL word mark, since the applicant lacked the confidence to use the mark on its own, while the red dot was primarily seen as a functional indicator of the temperature of the pan). See also *In the Matter of a Trade Mark Application by Ferrero* [2019] *SGIPOS* 19 (recognition of a single Ferrero Rocher chocolate in its packaging did not amount to distinctiveness).

²²² [1998] *RPC* 283, 303.

- ²²³ A distinctive mark may however contain other messages, such as suggestions or allusions as to quality or origin. As long as these are not deceptive, and thus contrary to TMA 1994, s. 3(3)(b), registration may proceed; see section 4.2.
- ²²⁴ *West (Eastenders)* [2003] *EWCA Civ* 48, [2003] *FSR* (44) 816, 841, [68]. The slogans case law, considered in section 3.2.6, confirms that signs can have multiple meanings (origin-indicating *and* laudatory) which coexist.
- ²²⁵ Cases C-108/97 and C-109/97 [1999] *ECR I*-2779, 2829, [47].
- ²²⁶ *Ibid.*, 2830, [52]; *Koninklijke Philips v. Remington*, Case C-299/99 [2002] *ECR I*-5475, [65] (substantial portion of the relevant class); *Bovemij Verzekeringen v. Benelux-Merkenbureau*, Case C-108/05 [2006] *ECR I*-7605 (First Chamber); *Oberbank v. Deutscher Sparkassen- und Giroverband*, Cases C-217 and C-218/13, EU:C:2014:2012, [42].
- ²²⁷ *Kombinat v. Fox Marble* [2017] *EWHC* 1408 (IPEC), [2018] *FSR* 1, [77].
- ²²⁸ This was confirmed in *Oberbank*, Cases C-217 and C-218/13, EU:C:2014:2012.
- ²²⁹ See *Fine & Country v. Okotoks* [2013] *EWCA Civ* 672, [2014] *FSR* (11) 190, [96], [97], [106], drawing attention to the statement of the Court of Justice in *Lloyd Schuhfabrik Meyer v. Klijsen Handel*, Case C-342/97 [1999] *ECR I*-3819, [23], that the assessment of distinctiveness required consideration of ‘the fact that [the sign] does or does not contain an element descriptive of the goods or services for which’ registration is sought. See also *Oberbank*, Case C-217/13, EU:C:2014:2012, [45]–[48] (while it may be practically more difficult to establish acquired distinctiveness for certain categories of mark, such as abstract colours, this does not justify imposing more demanding predetermined percentage requirements for such categories).
- ²³⁰ Cases C-108/97 and C-109/97 [1999] *ECR I*-2779, 2830, [50].
- ²³¹ Case C-108/05 [2006] *ECR I*-7605; also see *Nestlé v. EUIPO*, Case C-84/17, EU:C:2018:596, [56]–[78].
- ²³² [2007] *EWHC* 2203 (Ch), [2008] *FSR* (6) 125.
- ²³³ [2013] *EWHC* 1975 (Ch), [238].
- ²³⁴ *CNH v. OHIM*, Case T-378/07, EU:T:2010:413, [41]–[43] (no need to draw a distinction between farmers on the basis of whether they were actual or potential purchasers for the red, black, and grey coloured tractors of the applicant).
- ²³⁵ *Raimund Schmitt v. EUIPO*, Case T-56/15, EU:T:2016:618, [106]–[111], [138]–[139] (evidence relating to specialized brewing magazines insufficient to support claims to magazines as a broader category); *EUIPO Examination Guidelines*, Part B, Section 4, Chapter 14, [4]–[5].
- ²³⁶ Cases C-108/97 and C-109/97 [1999] *ECR I*-2779, 2830, [51].
- ²³⁷ One of the factors is stated to be ‘the proportion of the relevant class of persons who, because of the mark, identify goods as originating from a particular undertaking’: *ibid.*, [51]. However, in our view, this is not really a ‘factor’ so much as the essence of the inquiry: see *ibid.*, [52]. Consequently, we think it is more helpful to distinguish, as patent law does in its non-obviousness inquiry, between ‘primary’ and ‘secondary’ evidence. See *Glaverbel*, Case T-141/06 [2007] *ECR II*-114*, [41], *aff’d* Case C-513/07P [2008] *ECR I*-146*.
- ²³⁸ *Compagnie des bateaux mouches v. OHIM, Castanet*, Case T-365/06 [2008] *ECR II*-310, [59].
- ²³⁹ *The Coca-Cola Company v. OHIM*, Case T-411/14, EU:T:2016:94, [83] (shape of a contour bottle without fluting).
- ²⁴⁰ *EUIPN, CP12: Evidence in Trade Mark Appeal Proceedings* (2021) 7, 11–12; R. Coleman, ‘Fashion Dos: Acknowledging Social Media Evidence as Relevant to Proving Secondary Meaning’ (2016) 106 *TM Rep* 776.

²⁴¹ *Koninklijke Philips v. Remington*, Case C-299/99 [2002] ECR I-5475, [65].

²⁴² Evidence of use should not be conflated with the question of whether that use is in a trade mark sense: *Door Finger Protector v. Planet*, BL O/220/20 (DOOR FINGER PROTECTOR used frequently but descriptively on health and safety products).

²⁴³ *Heinrich Deichmann-Schuhe v. OHIM*, Case T-86/07 [2008] ECR II-321*, [46]–[50].

²⁴⁴ *Adidas v. EUIPO*, Case T-307/17, EU:T:2019:427 (the simpler the mark—in this case, three parallel stripes—the more likely that a change, such as reversing the colour scheme, will affect its distinctive character).

²⁴⁵ *Koninklijke Philips v. Remington*, Case C-299/99 [2002] ECR I-5475, [64] (‘as a result of use of the mark as a trade mark, and thus as a result of the nature and effect of it’, emphasis added); *Nestlé*, Case C-353/03 [2005] ECR I-6135, [26]. This means that the sign must be used ‘for the purpose of the identification by the relevant class of persons of the product or service as originating from a given undertaking’: *ibid.*, [29].

²⁴⁶ *ibid.* The mark—which had been the subject of several contested applications over many years—was finally registered in July 2006: TM 2015684. However, where the sign being claimed is highly descriptive (CRAFT for household utensils, pottery, crockery, and the like) and invariably used alongside another distinctive mark (STEELITE), tribunals will presume the distinctive mark does the heavy lifting for indicating source: *Steelite International v. Denby Brands*, BL O/259/18.

²⁴⁷ *August Storck*, Case C-24/05P [2006] ECR I-5677, [59].

²⁴⁸ *Koninklijke Philips v. Remington*, Case C-299/99 [2002] ECR I-5475.

²⁴⁹ *Reed Exhibitions v. OHIM*, Case T-633/13, EU:T:2015:674 (the use of INFOSECURITY for various information security products and services was not sufficiently emphasized to acquire distinctiveness).

²⁵⁰ *Työhönvalmennus Valma v. OHIM*, Case T-363/15, EU:T:2016:149 (shape of a games chest containing wooden blocks was not used such that it would indicate origin); *The Coca-Cola Company v. OHIM*, Case T-411/14, EU:T:2016:94, [83] (shape of a contour bottle without fluting was not itself used as a mark and also not implicitly visually contained within the well-known fluted bottle, which did function as a mark).

²⁵¹ *British Sugar v. Robertson* [1996] RPC 281. See also *L & D v. OHIM*, Case C-488/06P [2008] ECR I-5725, [AG86] (AG Sharpston) (some evidence must be presented that the mark in issue is actually perceived as linking the products that bear it with a particular undertaking, and such evidence cannot come solely from data such as market share and advertising investment or duration of use), and [75]–[76] (such evidence sufficed at least when coupled with ‘prolonged use’).

²⁵² *Wickes’s Trade Mark Application* [1998] RPC 698.

²⁵³ *Re Dualit* [1999] RPC 890, 898, [33].

²⁵⁴ *Windsurfing*, Cases C-108/97 and C-109/97 [1999] ECR I-2779, 2830, [53].

²⁵⁵ *Nestlé v. Unilever* [2002] EWHC 2709 (Ch), [2003] ETMR (53) 681, [22]. In general, the question of admissibility will depend on the court balancing the probative value against the cost of the survey: *Interflora v. Marks & Spencer* [2012] EWCA Civ 1501, [2012] FSR (21) 415, [150]. It is notable that Lewison LJ implied that such a survey (or related witness-gathering exercise) might have greater probative value where the issue is whether a registered mark has acquired distinctiveness than in determining whether there is likely confusion: *ibid.*, [137]. See Chapter 38, section 2.3.4, p. 1065.

²⁵⁶ A trade mark that contains a representation of one of the flags of the countries of the United Kingdom, the use of which would be ‘grossly offensive’, shall not be registered: TMA 1994, s. 4(2).

²⁵⁷ *Durferri v. OHIM, Kolene Corp.*, Case T-224/01 [2003] ECR II-1589, [76]; *Sky v. SkyKick*, Case C-371/18, EU:C:2020:45, [66].

²⁵⁸ A. Fernandez-Mora, ‘Inconsistencies in European Trade Mark Law: The Public Policy and Morality Exclusions’ [2020] *IPQ* 271; E. Izyumenko, ‘A Freedom of Expression Right to Register “Immoral” Trademarks and Trademarks Contrary to Public Order’ (2021) 52 *IIC* 893; both these concerns have led the US Supreme Court to strike down the equivalent provisions in the United States: *Matal v. Tam* (2017) 137 S Ct 1744; *Andrei Iancu v. Erik Brunetti* (2019) 139 S Ct 2294. See B. Beebe and J. Fromer, ‘Immoral or Scandalous Marks: An Empirical Analysis’ (2019) 8 *NYU J of IP & Entertainment L* 169.

²⁵⁹ *Constantin Film Produktion v. EUIPO*, Case C-240/18, EU:C:2020:118.

²⁶⁰ J. Davis, “‘Fack Ju Göhte’: Or When is a Trade Mark Offensive?” (2020) 79 *CLJ* 234, 234.

²⁶¹ *Constantin*, Case C-240/18, EU:C:2020:118, [39]. This can be contrasted with the UK IPO approach based on justifiably causing outrage: *Ghazilian’s Application* [2002] *RPC* (33) 628.

²⁶² *Ibid.*, [41].

²⁶³ *Ibid.*, [42].

²⁶⁴ *Ibid.*, [43] (emphasis added).

²⁶⁵ *Ibid.*, [42]. This resonates with the approach adopted by the Appointed Person, Richard Arnold QC in *FCUK* [2007] *RPC* 1 (noting that FCUK was permitted under extant UK advertising regulations and millions of articles had been sold under the sign, without condemnation).

²⁶⁶ *Ibid.*, [56] (disagreeing with the General Court and affirming that ‘freedom of expression ... must ... be taken into account when applying’ this exclusion).

²⁶⁷ *Constantin*, Case C-240/18, EU:C:2019:553 [47]–[57] (AG Bobek). For an illustration of the UK Registry integrating free speech concerns but ultimately refusing the mark (albeit on public policy grounds), see *Addicted*, BL O/442/19 (ADDICTED composite mark with marijuana leaf).

²⁶⁸ See Davis, ‘When is a Trade Mark Offensive’. The human rights case law on freedom of expression will have guidance on this aspect: Izyumenko, ‘A Freedom of Expression Right to Register “Immoral” Trademarks’.

²⁶⁹ UK IPO *Manual of Trade Marks Practice—Examination Guide: ‘Offensive Marks’*; see <https://www.gov.uk/guidance/trade-marks-manual/the-examination-guide> <<https://www.gov.uk/guidance/trade-marks-manual/the-examination-guide>>.

²⁷⁰ The General Court emphasized the overlap in *Constantin*, Case T-69/17, EU:T:2018:27, [23].

²⁷¹ *Constantin*, Case C-240/18, EU:C:2019:553, [60] (AG Bobek).

²⁷² *Ibid.*, [77]–[80].

²⁷³ EUIPO, *Trade Mark Guidelines (2021), Part B: Examination, Section 4: Absolute Grounds, Chapter 7.2: Public Policy*.

²⁷⁴ UK IPO, *Manual of Trade Marks Practice—Examination Guide: ‘Offensive Marks’*.

²⁷⁵ *La Mafia Franchises v. EUIPO*, Case T-1/17, EU:T:2018:146.

²⁷⁶ *Santa Conte v. EUIPO*, Case T-683/18, EU:T:2019:855.

²⁷⁷ *Brexit Drinks v. EUIPO*, R 2244/2016-2 (28 June 2017).

²⁷⁸ By contrast, the mark was refused registration for beers in the United Kingdom because its use would be seen as commemorative and nothing more: *Brexit*, BL O/262/18 (AP, Mellor).

²⁷⁹ M. Senftleben, *The Copyright/Trademark Interface: How the Expansion of Trademark Protection is Stifling Cultural Creativity* (2020).

²⁸⁰ M. Senftleben, 'Vigeland and the Status of Cultural Concerns in Trade Mark Law—The EFTA Court Develops More Effective Tools for the Preservation of the Public Domain' (2017) 48 *IIC* 683.

²⁸¹ *Municipality of Oslo ('Vigeland')* Case E-5/16, EFTA Court (6 Apr. 2017), [96]. The Court went on to distinguish between signs originally created as trade marks, which might also attract copyright protection as artworks, and copyright works seeking life extensions through trade mark registration, [97]–[99].

²⁸² *Jaguar Land Rover's 3D Mark*, BL O/589/19, [154]–[157].

²⁸³ See also Chapter 39, section 4, pp. 1114–16.

²⁸⁴ Consequently, mere advertising 'puff', as lawyers call it, as was present in the application KENCO THE REAL COFFEE EXPERTS, will not be misleading: *Kraft Jacobs Suchard Application; Opposition by Nestlé UK* [2001] *ETMR* (54) 585.

²⁸⁵ *Elizabeth Florence Emanuel v. Continental Shelf 128*, Case C-259/04 [2006] *ECR I*–3089.

²⁸⁶ *Ibid.*, [47], citing *Consorzio per la Tutela del Formaggio Gorgonzola v. Kaserei Champignon Hofmeister*, Case C-87/97 [1999] *ECR I*–1301, [41].

²⁸⁷ *Elizabeth Florence Emanuel v. Continental Shelf 128*, Case C-259/04 [2006] *ECR I*–3089, [48]. See also *Cormeton Fire Protection v. Cormeton Electronics* [2021] *EWHC* 11 (IPEC) [80]–[99] (deception does not extend to consumers being misled about who is using the mark, or the business origins of the products provided under the mark).

²⁸⁸ In particular, the questions/answers were confined to the case in which the trade mark came to be assigned with goodwill of the business, leaving open the possibility of a different conclusion in cases of assignment or licensing 'in gross'. For comment, see R. Moscona, 'What Really Matters? The Designer's Name or the Name on the Label?' [2007] *EIPR* 152.

²⁸⁹ *W. F. Gözze Frottierweberei v. Verein Bremer Baumwollbörse*, Case C-689/15, EU:C:2017:434, [52]–[56].

²⁹⁰ Case T-29/16, EU:T:2016:635; see also *Tea Marks*, BL O/358/17 (AP, Johnson); *LSA Legal Steroid Alternative*, BL O/825/21 (10 Nov. 2021) (mark was descriptive, if true and deceptive, if not a steroid alternative but an actual steroid).

²⁹¹ *CFA Institute's Application; Opposition of the Chartered Insurance Institute* [2007] *ETMR* (76) 1253; UK IPO, *Trade Marks which Contain the Word 'Chartered'* (2013) PAN 02/13 (deceptive because implies 'chartered status', which the UK IPO states thus 'deceives the public as to the quality of the services claimed').

²⁹² *Portakabin*, R 789/2001–3 (OHIM, BoA); cf. *Lord Corp./Metaljacket*, R314/2002–1 (23 Oct. 2002) (ambiguous mark METALJACKET for non-metallic coatings for metals not misleading).

²⁹³ *Wine Oh!'s Application*, R 1074/2005–4 [2006] *ETMR* (95) 1319.

²⁹⁴ *Madgecourt's Application; Opposition by Fédération des Industries de la Parfumerie* [2000] *ETMR* 825.

²⁹⁵ See also Scotch Whisky Regulations 2009 (SI 2009/2890). See UK IPO, *Practice in Relation to Trade Marks Containing the Words ‘Scotch’ and ‘Scotch Whisky’* (2011) PAN 1/11.

²⁹⁶ Paris, Art. 7.

²⁹⁷ For history, see N. Dawson, ‘Bad Faith in European Trade Mark Law’ [2011] *IPQ* 229; A. Tsoutsanis, *Trade Mark Registrations in Bad Faith* (2010). For the present position, see D. Hadrousek, ‘Bad Faith in Recent Case Law of the EU Court of Justice: Some Answers, More Questions’ [2021] *EIPR* 366.

²⁹⁸ *Chocoladefabriken Lindt & Sprüngli v. Franz Hauswirth*, Case C-529/07 [2009] *ECR I*-4893, [AG60]–[AG61] (AG Sharpston). The CJEU approach to bad faith has been endorsed in *Sky v. Skykick* [2021] *EWCA Civ* 1121.

²⁹⁹ *Koton Mağazacılık Tekstil Sanayi ve Ticaret v. EUIPO*, Case C-104/18 P, EU:C:2019:724, [45].

³⁰⁰ *Ibid.*

³⁰¹ *Ibid.*, [46]. *Sky v. SkyKick*, Case C-371/18, EU:C:2020:45, [75].

³⁰² *Lindt*, Case C-529/07 [2009] *ECR I*-4893, [42].

³⁰³ *Ibid.*, [37]. *Koton*, Case C-104/18 P, EU:C:2019:724, [47].

³⁰⁴ *Sky v. SkyKick*, Case C-371/18, EU:C:2020:45, [77]; AG Tanchev described this bad faith factor as the absence of ‘a reasonable commercial rationale for seeking such protection in the light of [the applicant’s] use or intended use of the trade mark’, [AG109].

³⁰⁵ *Lindt*, Case C-529/07 [2009] *ECR I*-4893.

³⁰⁶ *Hasbro v. EUIPO, Kreativni Događaji*, Case T-663/19, EU:T:2021:211, [38]–[39].

³⁰⁷ Arnold J identified several relevant criteria in *Red Bull v. Sun Mark* [2012] *EWHC* 1929 (Ch), [2013] *ETMR* (53) 1154, [131]–[138]; *Walton v. Verweij Fashion* [2018] *EWHC* 1608 (Ch), [2018] *RPC* (19) 689, [185]–[197]. These criteria are relied on by the Registry: *Carry On Film’s Trade Mark*, BL O/567/19, [23]–[24] (dispute over a film series title but no determination of bad faith); *In re Bonzo Dog Doo-Dah Band*, BL O/664/19, [116] (music promoter applied for a band name’s mark, which would have given it greater control than the band itself and bad faith established).

³⁰⁸ See Chapter 39, section 2.

³⁰⁹ UK IPO Report, *Cluttering and Non-Use of Trade Marks in Europe* (2015); USPTO, *Post Registration Proof of Use Pilot Report* (2015); G. von Graevenitz, S. Graham, and A. Myers, ‘The Problem of Earlier Rights: Evidence from the European Trademark System’ (CGR Working Paper 99, Mar. 2020). This was exacerbated by algorithmic conflict identification systems, which flag paper-based conflicts: D. Gangjee, ‘Eye, Robot: Artificial Intelligence and Trade Mark Registers’, in N. Bruun, G. Dinwoodie, M. Levin, and A. Ohly (eds), *Transition and Coherence in Intellectual Property Law* (2020), 174.

³¹⁰ *Sky v. Skykick* [2018] *EWHC* 155 (Ch), [2018] *RPC* (5) 227, [177].

³¹¹ *Ibid.*

³¹² Illustratively, two of the marks Sky relied on had specifications which were over 8,000 words long. The alternative argument, that such overbroad claiming fell foul of the public policy exclusion, was ultimately unsuccessful.

³¹³ *Sky v. SkyKick*, Case C-371/18, EU:C:2020:45, [77]; however, AG Tanchev’s approach is considered more robust and arguably more progressive in certain regards: Case C-371/18, EU:C:2019:864.

³¹⁴ *Ibid.*, [86]–[87].

³¹⁵ *Ibid.*, [79]–[80].

³¹⁶ *Sky v. Skykick* [2020] EWHC 990 (Ch), [2020] RPC (16) 711.

³¹⁷ *Ibid.*, [21].

³¹⁸ *Ibid.*, [23]–[35]. The trimmed specification was devised with an eye to what was actually being provided but also included a ‘modest penumbra of protection’. Thus, computer software was narrowed to ‘computer software supplied as part of or in connection with any television, video recording or home entertainment apparatus or service; computer software supplied as part of or in connection with any telecommunications apparatus or service ...’ etc. This approach had been advocated by P. Johnson, ‘So Precisely What Will You Use Your Trade Mark For? Bad Faith and Clarity in Trade Mark Specifications’ (2018) 49 *IIC* 940, 966–7.

³¹⁹ *Sky v. SkyKick* [2021] EWCA Civ 1121, [116]. In so doing, the Court of Appeal adopted the approach in *Jaguar Land Rover v. Bombardier Recreational Products* [2016] EWHC 3266 (Ch), [2017] FSR (20) 462, and *HTC v. One Max*, BL O/486/17.

³²⁰ *Hasbro v. EUIPO, Kreativni Događaji*, Case T-663/19, EU:T:2021:211 (bad faith established on the basis that although refiling per se is not prohibited, doing so to intentionally bypass the use requirements undermines the very normative basis for granting trade mark rights). See also *Seated’s Application*, BL O/027/22 (whilst applying for a UK trade mark might be seen as leverage in an ongoing overseas dispute between the parties, it was also plausible that the applicant intended to commercially expand and wished to safeguard future plans, so no bad faith); *Swatch v. Apple* [2021] EWHC 719 (Ch), [2021] FSR (23) 795 (the applicant’s desire to annoy, or possibly even parody, a competitor by filing the mark does not meet the demanding dishonesty standards of bad faith).

³²¹ *Mickey Dees (Nightclub) Trade Mark* [1998] RPC 359; *In re Ion IP Application*, BL O/243/19 (applying in the United Kingdom where there is a former business relationship is not without more an indication of bad faith).

³²² *Target Fixings (Brutt Trade Marks)* [2007] RPC (19) 462, 485, [100]; *Mary Wilson Enterprises Inc’s Trade Mark Application* [2003] EMLR (14) 259 (bad faith application to register THE SUPREMES contrary to agreement with Motown Records); *Saxon Trade Mark* [2003] EWHC 295 (Ch), [2003] FSR (39) 704 (bad faith application by former member of heavy metal band to register SAXON, which Laddie J considered to be a partnership asset); *Gromax Plasticulture* [1999] RPC 367 (bad faith on part of distributor not established); *SA.PAR Srl v. OHIM*, Case T-321/10, EU:T:2013:372 (registration of GRUPPO SALINI by former member of group of Salini family-held companies cancelled as lacking good faith).

³²³ *John Arthur Slater v. Prime Restaurant*, Case R 582/2003–4 (OHIM, BoA) (concerning the sign EAST SIDE MARIOS registered in the United States and Canada).

³²⁴ *Socks World Trade Mark Application* [2011] RPC (11) 329 (where BEKO SPORT was seemingly inspired by BEKO, the mark for the well-known white goods manufacturer, the opposition under the unfair advantage/free-riding heading was successful but this did not amount to bad faith). Cf. *Trump International v. DTTM Operations* [2019] EWHC 769 (Ch), [2019] FSR (28) 604 (rejecting an appeal against the UK IPO decision finding bad faith, recognizing the pattern of disruptive applications by the notorious applicant Michael Gleissner, who owns close to 7,000 trade marks worldwide); see T. Lince, ‘Michael Gleissner: Massive Scope of Trademark and Domain Portfolio Revealed in Exclusive Data’, *World Trademark Review* (24 Nov. 2020).

³²⁵ [2006] RPC (25) 633.

³²⁶ *Chocoladefabriken Lindt & Sprüngli v. Franz Hauswirth*, Case C-529/07 [2009] ECR I–4893.

³²⁷ *Hotel Cipriani v. Cipriani* [2008] EWHC 3032 (Ch), [2009] RPC (9) 209, [165]–[202].

³²⁸ *Ibid.*, [189].

³²⁹ *Hotel Cipriani v. Cipriani* [2010] EWCA Civ 110, [2010] RPC (16) 485, [54]–[57].

³³⁰ Or where a trader seeks to appropriate residual goodwill belonging to an individual: *Vera Lynn*, BL O/766/19.

³³¹ [2007] EWHC 2376 (Ch), [2008] ECDR (4) 43. See also *Pavel Maslyyukov v. Diageo Distilling* [2010] EWHC 443 (Ch), [2010] ETMR (37) 641 (application to register DALLAS DHU for whisky was bad faith given that DALLAS DHU was name of defunct distillery).

³³² In accordance with Paris, Art. 6ter; TRIPS, Art. 15(2); EUTMR, Art. 7(1)(h).

³³³ Exclusion from registrability as a trade mark is only one aspect of a broader constellation of regimes protecting mega-sporting events against so-called ‘ambush marketing’; see P. Johnson, *Ambush Marketing and Brand Protection: Law and Practice* (3rd edn, 2021); S. Ericsson, ‘Ambush Marketing: Examining the Development of an Event Organizer Right of Association’, in N. Lee, G. Westkamp, A. Kur, and A. Ohly (eds), *Intellectual Property, Unfair Competition and Publicity Convergences and Development* (2014).

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